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Loudoun County Board of Supervisors, Business Meeting, Tuesday, November 18, 2025

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Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 7h 15m (video)

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[00:08:24] Well, good evening, supervisors, good evening, staff, and good evening, Loudon. I'd like to call to order the November 18, 2025, Loudon County Board of Supervisors business meeting. This room has a hearing loop. If you need a hearing assistance, please switch your hearing aid to the telecom mode.

[00:08:40] If you need a headset, we have those available as well. Please see the clerk to request one. This evening, Supervisor Umstead will lead us in any words of wisdom and the Pledge of Allegiance. Thank you, Madam Chair. I would like to ask the blessings of the Lord on our armed forces, whether serving in this country or overseas, and for his protection of all of our residents in this county, in the Commonwealth, and in our country.

[00:09:16] Amen. Please join us standing for the Pledge of Allegiance. I pledge allegiance to the flag, to the republic, to stand. Supervisors, I'm going to read the consent agenda, which has changed about 15 times since yesterday.

[00:09:44] So please listen closely so that if something's on there that shouldn't be on there or off that should be on there, you catch it because I may have missed something. Item R1, proclamation to recognize November 2, 2025 as Archives Month in Loudoun County.

[00:10:01] That's for approval and presentation. Ms. Umstead will join me down front for that. Resolution Honoring Excellence in Loudoun County's Wine Industry 2025, the Loudoun County Wine Award recipients. There were a lot of people who were coming in for that. Mr. Crony and Mr. Kirshner will join me down front for that.

[00:10:19] Item I-3, Resolution Recognized 21 Years of Public Service by Aaron McClellan, Senior Deputy Administrator. That's for approval only. We will do the resolution presentation at the next meeting. I, 1A, Contract Award, Construction Management at Risk for the Courts Complex, Phase 4.

[00:10:40] Item 1B, Contract Award, Construction Support Services for the Courts Contract. Item 1C, Contract Award, Geotechnical Engineering and Social Scientist Services. Item 1D, Contract Award, Construction of the Fire and Rescue Station Number 8 in Philomont.

[00:10:55] Item 1E, Contract Award, Traffic Engineering and Operations Services. Item 1F, Contract Renewal Information Technology Consultation Services. Item 1H, Calendar Year 2026, Payment Schedule and Utility Allowance for the Housing Choice Voucher Program.

[00:11:14] Item 1I, Human Services Nonprofit Grant Program Community Engagement Assessment and Recommendations. Item 2A, Energy Innovation Forum. Item 2B, Expedited Process for Legislative Attainable Housing Applications.

[00:11:31] Item 3A, Appointments and Confirmations. Item 4, Administrative Violence Report of November 18, 2025. Item 7, Whitfield Place Crosswalk Safety Improvement Study. Item 8, Proposed Traffic Calming in the Brambleton Community.

[00:11:49] Item 9, Proposed Traffic Calming Measures in the Lena Woods Community. Item 10B, Board Member Initiative Amendment Chapter 873 of the Codified Ordinance of Loudoun County Personal Property Tax Relief for Elderly are totally, permanently disabled, and item 11, board member initiative, demolition, dust mitigation effort.

[00:12:09] I will make the motion to approve the consent agenda. Is there a second? Is that motion seconded by Supervisor Turner? By Strick Turner, rather, a discussion on the motion. I would say just a couple things really quickly. Item 1A and item 2B, sometimes these things go by quickly because they're on the consent agenda, but we've really done a lot of work on these. The nonprofit grant, community engagement assessment recommendations is such an important item. I'm sure everyone's ready. I do want to thank staff. I especially want to thank all of our nonprofit partners. Item 2B, expedited process for legislative attainable housing applications. I want to thank Vice Chair Turner

[00:12:49] who's really worked on this with Kim Hart and others to get this done. I'm going to talk about the importance of, oh, Mr. Hart's here. I'm going to talk about the importance of this when I get to my chair's comments, but I do want to do want to note that. And then item 10, the 873 that caught up our ordinance of Loudoun County, personal property tax relief for the elderly or totally permanently disabled. You know, sometimes I read things, I've like literally read we should do this, like we've been doing it for a long time now. And I think because we put it on the consent agenda, there's not usually a story on it and it goes pretty

[00:13:25] quickly, but it's important to stop and say that we have done this and thank everyone who's been part of that effort as well. Other discussion on the consent agenda, Mr. Crony. Thank you, Chair Randall. I want to thank staff for putting together the Energy Innovation Forum, some ideas and quotes for

that. I think it's important for Loudoun County to be a leader in energy innovation since we do have the largest amount of data centers in the world. I think it's important and that we bring together the thought leaders and come up with what the future might look like for energy innovation.

[00:14:03] I also wanna call out number eight and number nine. Both are traffic calming measures in the Little River District. One is in Brambleton at Bubbling Brook Drive. There'll be two watch for children signs. And then the other one is in Lena Woods community with five Watch for Children signs in Lena Woods, and we received letters both from the HOA presidents, and I want to thank them for reaching out to me, and I look forward to getting those traffic calming measures done in the community.

[00:14:38] Thank you. - Thank you, Mr. Sainz. - Thank you, Madam Chair. Just to clarify, 1G, is that now off consent? Is that correct? - If I didn't read it, it's not on consent. - Look at the Operation Home and Services. I did read 1G. 1G.

[00:14:55] We were going to ask about that, Chair Randall. We did not hear it when you went through it. Oh, I'm sorry. It is. 1G is on the same. Yes. Good thing I asked. Okay. In regards to item number 10, my board member initiative for personal property tax tax relief for elderly or totally and permanently disabled, thank you to my colleagues for supporting this.

[00:15:16] This now aligns the qualifying criteria for personal property tax with those established for the real estate tax relief of Chapter 872 of the Codified Ordinance. This would take effect tax year 2027. And then we have upcoming on our December 2nd meeting.

[00:15:32] This will help a lot of folks. I believe it will go a long way. So hopefully we'll continue on this path and vote to support this. Suzanne, you've got to look closer to your microphone. And the item on December 2nd. So thank you, colleagues, for that. And then my item, board member initiative number 11, demolition dust mitigation efforts. I started to see a lot of buildings come down but what I noticed was that we didn't have any dust mitigation in the county so anybody can just knock down a building with a bulldozer and then the dust just goes up in the air but on my driving to work quite frequently into the city there was a big everybody's probably familiar with the Keybridge

[00:16:12] Marriott that was demoed but the difference was they had a big water system when they had boulders is knocking it down every single day. They're spraying water and other things to make sure the dust was not just floating and getting into the air so with that water hose they're knocking some of that dust down so I did some research my staff did some research and figured out we did not have that here in Loudon figured it would be something good to look at and bring to our county so I'm glad this is moving forward as well so thank you to my colleagues. Thank you Ms. Brixman. Thank you Madam Chair and I want to thank Supervisor Sains for those two initiatives

[00:16:49] very important and good catches um i want to echo what chair randall said about the grant process what we did in finance just so my colleagues know and the greater public who didn't see is the grants process is changing a little bit but not much for the fy27 grant process the fy27 grant process does have some changes that will be implemented but what we did in finance was not basically recommend approval just yet of the future sort of bigger changes in the grant process on after several conversations with our nonprofit community they wanted some time to digest the

[00:17:29] consultants 200 page document of recommendations and have more conversations with staff about how it would be implemented so this 27 grant process will be published in the next couple days so

we so folks can get started on those applications, and then we'll be working further to refine what's going to be happening in the 27 and 28 process.

[00:17:52] I also wanted to thank my colleagues for supporting the proposed redesign of a crosswalk and pedestrian safety activities on Whitfield Place. You may recall that we lost a beloved Algonquian resident in that crosswalk.

[00:18:13] In early 2024, Seizen Mao, 81, was struck by a car in that crosswalk near Cascades Library. And he was a beloved volunteer in the Cascades Senior Center. He helped raise his grandchildren, and he was always known to enjoy Algonquian Regional Park on his bike and on foot and fishing over there.

[00:18:39] So I just wanted to also alert my colleagues. I will be asking for this project to be considered in our fund balance discussions for the 2025 fund balance. It's about \$950,000 to complete the improvements there.

[00:18:55] And, you know, in honor of Mr. Mao, but also because I'm really concerned that we have about, I think, 400 residential units going up right now, right there in Cascades Marketplace and near Cascades Marketplace.

[00:19:11] And there are going to be multitudes of families and kids that want to simply cross that street and get to the library and or the senior center. So I'll look forward to that conversation when we talk about fund balance. Thank you. All right. I made the motion. Seconded by Supervisor, Vice Chair Turner, I'll in favor say aye.

[00:19:27] Aye. Any opposed? That motion will pass 801. I'm sure Mr. Kirsten will be here very soon. Supervisors, I have quite a bit of chair's comments, so I'll try to go as quickly as possible. First of all, I'm going to pass you right now to legislative. It says, let's just say, the preliminary program from the Brazilian Association of Counties.

[00:19:44] It's actually the final program. They put preliminary on that before the meeting because they were not sure if the changes were going to be made. Changes were not made. So what you're getting in your hand, Mr. Turner, if you pass one down, please, is the final ledge program for VACO. We're going to hand them down this way as well. We do have one for Mr. Freeman and Mr. Quintine as well.

[00:20:05] So for anyone that doesn't know, the Virginia Association of Counties is we decide the initiatives that we're going to put in front of the General Assembly. And so we decided those at the VACO Conference between November 17th and the 11th that many of us attended on that last day.

[00:20:26] I think I was the only one left there, and so that's why I brought some back for everybody. One of the most discussed items and something I really want everyone to be very aware of is the fact that there is serious discussions in the General Assembly about the General Assembly doing land use and zoning from Richmond.

[00:20:47] There seems to be an emerging belief that might be true for some localities, although absolutely not true for Loudoun County, for Fairfax County, for Arlington County, that municipalities do not want to build housing or attainable housing. That is just not true.

[00:21:03] And I think what's happened is we, the localities and VACO, have not done a good job telling the story to the General Assembly about all the things we have done to build attainable housing are the things

we're putting in place, like one cents on the tax dollar, or standing up a housing and community development department, things like that that we're doing here in Loudoun.

[00:21:28] Some of the things that we're doing, you won't see housing later, but the issue is if they start doing land use and zoning from Richmond, that means one, we lose our local control to do land use and zoning, and it also means two, there will be homes placed in places that really should not have homes in it.

[00:21:47] There was one bill that went forward last year that did not thank gracious pass, but I am told if it goes back this year, then it will pass. This is not the actual title, but it's actually called the Yes in God's Backyard Bill. And it says that if any faith community, if any church, if any faith organization owns land, then they can put up to 20 homes on one acre of land.

[00:22:13] Now, if you think about that, if you think about Western Loudoun County, we do not have an infrastructure to put that type of land out there. And so while we do want to have attainable homes by the metro and other places, we don't want to put it in western Loudoun County.

[00:22:31] So what we have said to them is that localities are very different. Arlington is very different than Loudoun, which is very different than Chesterfield, which is very different than Herico. So you can't do one land use and zoning. But I do want us to be aware that this is one of the largest discussions we're going to have to deal with or address this year as we go down to the General Assembly.

[00:22:53] So everyone just be ready for that. Thursday the 13th, I did go again to another Leadership Greater Washington meeting. Of course, Leadership Greater Washington has a different focus. Every time last year was economic development.

[00:23:09] This year was the, this week was the, I said last year, I just said last month. This month was the arts. We went to the sitar arts program that does kind of everything. They did dance, acting, sculpting, painting, singing, drawing.

[00:23:24] If there's an art, Sitar did it, and they take kids from basically two years old to adults. It's actually in D.C. I have never been more uncomfortable in my life because I have not an artistic bone in my body, nothing.

[00:23:40] And so it was -- I did all the stuff, but I didn't have -- it was tough. And so that was LGW. Also NVTa, and I'm handing out that letter as well, NVTa met and we approved a letter that was sending to the chairs of the House and Senate Transportation Committees at Vaco.

[00:24:03] It is a letter that was requested that they did -- they requested of us to do a report on the regional approach to funding Virginia's bicycle and pedestrian infrastructure. Because it was NVTa and because the code of NVTa says that NVTa money that is collected by Northern Virginia has to remain in Northern Virginia, what we did was actually only about Northern Virginia, not obviously the entire Commonwealth.

[00:24:33] But I will hand those out to you as well so you can see what that looks like. And they did an amazing job in record time as the chair of MBTA. That was not hard for me to do, and we're really proud that we got that done.

[00:24:50] Here you go. And finally, students of budgets, colleagues, listen to me very closely, please. Okay. DMV Moves is the effort to find a sustainable, bondable source of money for Metro to keep running.

[00:25:08] We all know how important Metro is to this region. DMV Moves has been meeting for 18 months. It's been the chief elected officials of the entire region, including Maryland, and yeah, just Maryland, and DC, Virginia, as well as staff of municipalities, as well as interest organizations.

[00:25:31] I mean, just a lot of people who have been doing this effort. We have finally had, after 18 months, our final DMV move meeting. When we started off, we thought it was going to be a \$1 billion we'd have to find. As it turned out, it was about \$460 million of that, Virginia's cost is \$136 million.

[00:25:53] I am asking, Mr. Hemstreet and I are asking some of the people who led the DMV move efforts, again, I was part of it, to come to here next, the next meeting, Mr. Hamstreet, the second, is it the second, to report on the entire process and what, and how it came to be.

[00:26:14] It was a very long process, and it's fairly complicated. I am very confident that Vice Chair Turner, who I've been keeping abreast of this all along, and Supervisor LeTurne, who was on the Metro board since Moses was a baby, probably understand what we did just fine.

[00:26:31] But for everyone else, I'm going to say that Mr. Hill Street and I are going to offer some briefings on DMV moves before the next meeting because there's no possible way we can sit here and recreate 18 months of what we did on the dais. So please take the meetings and so when we get on the dais, we can move this faster. The vote that was taken to accept the DMV moves recommendation is a non binding vote, but But really, we want to go back to all of our localities to explain and so you can understand what we did and why we did it.

[00:27:04] I will say DMV Moves was about metro capital. It wasn't about metro operations. And if we don't do this right now and find a sustainable, bondable source of revenue, then one, we would be back here in five years or two, we're going to lose metro.

[00:27:21] So it was a really huge effort. So we're going to reach out to you all, Mr. M Street and I, and offer briefings. Take the briefings, please. Please, please, please. And lastly, I will say we have a long meeting tonight, supervisors. I'd like to get us off this dais by 12 midnight. I really appreciate all y'all trying to help us get us off this dais by 12 midnight.

[00:27:40] All right. Mr. Crony has brought me a most amazing voice for a cause this week. And Mr. Crony, I appreciate it. She is on the board. my voice for a cause this evening is the ohana preservation foundation the ohana preservation foundation's mission is to serve vulnerable children their families and caregivers through individual small group counseling and mental wellness programs that incorporates equine assisted activities horticulture and expressive arts each program is care is catered to to the

[00:28:17] needs of the group and the overall themes they are focusing on whether it's building resilience finding cohesion and purpose, team building, leaderships, retreats, and more. We have with us some members from the OHANA Preservation Foundation, and I'm going to ask Ashley Watson if you would introduce everybody who's come with you this evening.

[00:28:41] - Sure, absolutely. My name is Ashley Watson, and I am Brody Watson's dad. I'm also the vice president of the board at OHANA, and I've been involved with OHANA since 2022. This is my wife, Wendy Watson, mother of Brody Watson.

[00:28:56] She's been on the advisory board since 2022 with Ohana. This is Heather Hess. She's also a member of our board. And this is Melissa Pankus. She's the owner of Ohana and the president of Ohana.

Wonderful.

[00:29:12] I'm going to ask the last question first, since you've already mentioned Brody. Can you speak about the Brody Ohana Fund, why it was formed, And talk about what you've done to help honor the memory of your son. I will say that your beautiful son died by suicide.

[00:29:31] And Ohana was created to help other kids and other families and to keep his memory alive. So would you speak about the Brody Ohana Fund, please? Sure. Thank you. And thank you for having us here today. So back in 2022, February of 2022, we lost our son after he had been bullied.

[00:29:51] he had been bullied repeatedly and unnecessarily, and we were not notified by the school, and it was too late. Fast forward about six months, and we were invited to an event at Ohana called Healing with the Horses. We really had no idea that Ohana was even there, and we lived literally two or three miles from this place. It's kind of hidden behind the woods right off Route 15. So we went to this event it was very powerful i've always been feel like i'm connected to animals anyway and this 81

[00:30:27] acres of just beautiful serene horses and nature and i believe this was the start of our healing process in addition about two to three weeks prior to be invited to this event my family and i we made a pact that you know as we go through this journey and all the pain that we're going through the pain will never go away we hope to adjust and we have adjusted some but we made a pact to try to do what we can to help others in any way possible. And once we went to Ohana, these things started

[00:31:04] clicking for me, and I started to talk to them with Wendy and Brody's twin brother, Avery. And I was like, wow, this just aligns. This is the right thing. These things are happening for a reason. So we decided to take our mission and our pact with Ohana. And really, I've never left since I went to that event. We've never left Ohana. I've done a lot of work there, as I mentioned, part of the board and fast forward to last year i guess late summer last year we went to ahana to meet with melissa and i neglected to say that melissa and jim pancus own her husband jim is

[00:31:40] also a big part of ahana does so much for the organization um we met with them to talk about things we wanted to do we knew we wanted to continue to honor brody and um and keep his name alive and and be a voice for him and help others so we started talking about what we want to do for a first event. And we started talking about having a walk at Ohana on the 81 Acres.

[00:32:05] And we came up with a 3.25 walk. Their birthday was March 25th, 2009. And at first we were like, I said, let's push it off to the spring. Let's really plan this and do it the right way. And my wife stepped in and said, no, we're going to do it on this date. And it was like less than a month away. And I was like, I don't know about that. And she put her foot down and said, no, let's do it.

[00:32:29] If we have three people show up, that's fine. Next year, we'll grow it. We had hundreds of people show up. The news showed up. We raised, in less than a month of planning, we raised over \$15,000. And all this money in the Brody Ohana Fund goes to our mission.

[00:32:45] Our focus is on kids, helping grieving families and focus on kids to help them build resilience, bullying prevention and awareness. Help them build motivation and confidence in themselves and who they are because we're all different in so many ways.

[00:33:02] So that was the first year we had the walk. We're doing that annually. We just had our second walk, and we had a lot more planning time, and we have raised, I think, close to \$30,000 this year. So we're

approaching \$50,000 on two fundraising events, and our mission is we want to support and help the community.

[00:33:22] We know we're not the only ones that are hurting. There's a lot of hurt. There's a lot of violence. There's a lot of anger. There's a lot of people that are losing people tragically in so many different ways, Whether it's fit and all, whether it's accidents, the traffic around here is just insane. I love hearing that you guys are trying to address some of these issues.

[00:33:40] There's a lot of hurt out there. And before I lost my son, I really didn't realize that. So we are trying our best to help others as much as we can because we feel like our son would appreciate that. And that's our mission. Thank you.

[00:33:56] And you've actually answered two of my four questions. You did a great job. No, that's 50%. You're right. So let's do the other pictures then. What are, why, tell me why, for anyone that doesn't understand, like, equine therapy, arts therapy, versus, like, a more traditional office-based therapy, because really, therapy is becoming that much more, like, out of the office.

[00:34:23] Tell me why you always chose to do arts-based therapy or equine therapy. Sure. Thank you again for having us. First of all, we do, we partner with a lot of different types of therapists.

[00:34:39] We have a team of specialists, and they include licensed counselors, certified equine specialists in mental health, horticultural therapists, and we are able to use Ohana and customize therapeutic retreats and mental wellness programs for family experiencing grief through the loss of a child or a parent.

[00:35:00] We also focus on children that are in hospice. We focus on forensic nurses who face a lot of trauma as well. They see a lot of trauma. And we also work with children and teens that come from behavioral health centers, juvenile detention centers, and a lot of different groups.

[00:35:19] So at Ohana, you know, these people are able to come, the children, the parents, they're able to build trust and love through the animals. and find healing amongst nature. The 81 acres out there is very serene and extremely peaceful, and we've seen amazing and touching experiences when we put, you know, a bunny in a child's arm, or we have them groom and interact with our mini donkeys and our horses on the property.

[00:35:51] I've personally witnessed a hospice child who had not opened their eyes for days, And I brought over our pony and this child responded to our pony as because our pony lowered her head to touch the child's hand and the parents were amazed because that child had not opened their eyes for days. You can't do that in an office setting. We feel like for those who have lost trust in people, the animals can be a gateway to rebuilding that trust. You know, our licensed therapists that are on the property, they notice that clients with trauma histories consistently

[00:36:27] report feeling safer in the natural environments compared to the office setting. Families note that the unique Ohana environment motivates their children to actually go. A lot of children don't want to go to therapy. They don't want to sit in a room. They want to be outside and they want to interact with the animals. And, you know, being outdoors actually makes it a lot easier to approach difficult subjects um without being very overwhelmed um so you know we've seen parents who have lost children and they choose to have their counseling sessions outside while walking

[00:37:02] the the fields at ohana so you you just answered the other pictures and the questions you all are very very thorough very thorough the only question you first of all before i ask you last question um you know i i've gotten to know susie bartell very well her son ryan also died by suicide it is it is what you all what you're doing so that other parents do not experience what you all are experiencing and the the hope you are giving because because we all know that

[00:37:40] suicide is often not so much an act of depression as an act of hopelessness the hope you are given so that other people will not experience this or that they just have connections it's it's it's unbelievable and so while i think i speak for the whole board to say we are so sorry for your loss but but not but at the same time thank you for what you're doing so that other people will not experience the same grief yes thank you very much what you haven't answered is how people get

[00:38:12] a hold of you. What's your contact information? So we have a website. It's ohanapreservationfoundation.org. You can get on the website. You can apply to volunteer. You know, if you have children that are involved in any kind of activities or in schools, I work at a local high school, and I'm in charge of the Key Club, which is a service organization, and we hold a raffle that benefits ohana people can have animal food drives oh wow for well it's very expensive

[00:38:47] to have the animals there so any um or they can make a direct donation on the website um you know we rely on the support from the community and we are so incredibly grateful for any support any donation any volunteers that we can get to help us um with the mission one more time with the the

[00:39:06] the web address? It's ohanapreservationfoundation.org. And will you say what Ohana means? It means family. It means family. So when you're at Ohana, you are family. You are family. Yes. So supervisors, you all have something about Ohana on your dais. Um, I, I'm going to link this in my newsletter that goes out to quite a, quite a few thousand people. And so that everyone will have that as well. Um, Ashley, Wendy, all, all of you.

[00:39:28] Thank you. Thank you. thank you thank you so much for being here um one last question how's your how's your how's your other son doing well to be honest uh we think he's doing okay okay no um we have one son left now so we are a little bit uh over cautious maybe yeah i imagine for a reason i imagine we're doing everything we can for him as well amen amen most of the family stuff it's you can't yeah you can't overlook it it's very it's very difficult but uh one thing that has started the healing process

[00:40:05] for us is these events and these things that we're doing knowing that the community is behind us and even just you guys having us here absolutely so much to us what means so much to us what you're doing I don't allow clapping the boardroom very much but we clap right now thank you for so much for being here mr. Hemstreet do you have any items this evening thank you ma'am chair I have four items for this evening the first is that the Loudoun County hypothermia prevention shelter is now open for single adults age 18 and older who are experiencing a housing

[00:40:41] crisis resulting in homelessness. This temporary shelter, which provides a warm indoor sleeping environment and meals, will be open from 5 p.m. to 8 30 a.m. seven nights a week through March 31st. More information is online at loudon.gov/slash/homeless/services. Second, Loudoun County fire officials have two important safety messages in the wake of a house fire that caused extensive property damage to a home in Ashburn this past weekend. One, it is vitally important that every home has working smoke alarms. Two, ensure that you are using and charging lithium-ion batteries correctly. And with Thanksgiving coming up next week, fire officials encourage everyone to stay

[00:41:20] safe in the kitchen and never leave food or cooking food unintended. More information on how to avoid all types of fires can be found at [loudon.gov slash fire safety](http://loudon.gov/slash/fire/safety). Third, due to rising operational costs, Loudoun County Transit is increasing the one-way trip fare by \$1 for all commuter bus routes traveling to Crystal City, Roslyn, the Pentagon, and Washington, D.C. The one-way fare with a smart trip card will be \$12, while payments with cash will be \$13. The increase is effective Monday, December 1st. More information is online at [loudon.gov slash commuter bus](http://loudon.gov/slash/commuter/bus).

[00:41:55] And then finally, Loudoun County is hosting the second annual PRCS Winterfest on Saturday, December 6th at Hal and Bernie Hanson Regional Park. The free event is intended for all ages and will feature a winter market with local vendors, children's activities, music, miniature train rides, a visit from Santa, and other winter characters and more. In addition, several local non-profit organizations will be featured along an interactive walking path. More information is online at [loudon.gov slash winterfest](http://loudon.gov/slash/winterfest). Those are my comments this evening, Madam Chair. Thank you, Mr. Hamstreet. All right.

[00:42:28] Supervisors, I'm going to actually ask our LEDGE team to come on up. So this is the first LEDGE program report for the new session. And I think it's going to be, because it's our first one, I'm asking them to go through everything.

[00:42:45] I do want to, as always, respect our colleagues who don't want to vote on certain issues. and so I will figure out how to separate those when we get there.

[00:43:01] We do have, I think, four or five, let me see, one, two, three, four items that are on the dais for the Ledge program. Supervisors, I want to say before we start that because it has been said that the Ledge team, which is Mr. Saines and I, haven't let things in the Ledge program.

[00:43:24] That's just not correct. The truth is that the ledge program is hard to put together and has certain dates attached to it. And so when the staff comes to us and asks us to turn in items by a certain date and then extends that date when things don't get turned in, at some point we have to call it.

[00:43:44] And so if you didn't get your item in, it's not because the ledge program doesn't want to, but it's because we have to give staff time to put it together. So if you brought it to the board to the day of today, it will take us more time to get through them. And hopefully in the future, we can get them in in a more timely manner when the staff asks for them.

[00:44:04] So good evening, and we are ready whenever you are. Good evening, Madam Chair, members of the board. Before we get into the item, we do have our state contract lobbyists here, one of our state contract lobbyists here, Miss Elizabeth Parker from Troutman.

[00:44:24] And so she has some remarks that she would like to make. Hello, Elizabeth Troutman. Nice to see you. I'm Madam Chair, members of the board, Elizabeth Parker with Troutman Strategies. I have the privilege of working with Loudon down at the General Assembly in Richmond, which is coming up here quickly.

[00:44:40] You may have heard two weeks ago we had an election in Virginia. I'm just going to give you kind of a quick rundown. Did we? Of some of the results and the impact that's going to have on the legislative session. So, as you may be aware, Democrats flipped the statewide offices of governor, lieutenant governor, and attorney general by very sizable margins.

[00:45:03] Abigail Spanberger will be the first female governor of Virginia. Ghazala Hashmi, currently a state senator, will serve as lieutenant governor. And Jade Jones, a former delegate from Norfolk, will be attorney general. In addition to the statewide seats, all 100 seats of the House of Delegates were on the ballot.

[00:45:19] And previously, the Democrats held a very tight majority in the House. So they had a 51-49 majority going into election night. Ultimately, as I said, it was a good night for Democrats. They won 13 additional seats in the House to take them to a near supermajority of 64 seats held by Democrats to 36 seats held by Republicans.

[00:45:43] This will have an impact on the 2026 session in the House as committees where legislation is heard are set up with respect to proportional representation. among the parties or between the parties rather so um the committee assignments are made proportionally to the balance of power and so as the democratic majority expanded in the full house so too now will the number of seats on committees that hear bills and this will have an impact throughout the session there are a number of new members coming in to the general assembly on the house side and the great news is we have a couple with local government experience that's

[00:46:21] very helpful for us, especially Madam Chair regarding your comments earlier with respect to land use and zoning. Those are very helpful allies to have. And the other piece of good news is we have even more members who are either former state government officials. We have a couple auditors, folks who are familiar with government and processes. So that's great news going into January. Just as a refresher, we did not have Senate elections this year. So the balance of power in the state senate is 21 democrats to 19 republicans with a new democratic lieutenant governor breaking any tie vote and come january democrats will have control of all three statewide

[00:47:01] offices and the house and the senate for the first time in four years january 19th correct yes ma'am so inauguration um is uh january 17th and the session will begin on january 14th okay january 14th okay so happy to take any questions but just to give you some sense of where we're heading. Thank you very much. Do we have any questions about the election and what just happened? We good? All right. Mr. Freeman, we're ready. So as staff was developing this item in consultation with the legislative contacts, some things that we took into consideration

[00:47:38] is, of course, historical issues related to Greenway, you know, issues related to federal impacts as well as issues related to and staff will go over in a future item on DMV moves related to metro funding and so we tried to take a lot of things into consideration as well as the sales of use tax exemption. Those conversations are not going to stop especially around the energy efficiency standards and so we remain watchful on how that will impact the county's legislative

[00:48:11] program. So in the first section, there are two housing-related statements, the first of which is to, you know, add under the increased opportunities for attainable housing, some programs related to state rental assistance programs, sponsoring partnerships, or revitalizing communities.

[00:48:35] And we also have another statement that was included. This relates to a bill to ensure that the five most spoken languages are translated within the summaries on lease agreements. This was a bill that passed the General Assembly and was vetoed due to the explanation that the governor provided was that there were already bills that passed the General Assembly requiring summaries to be provided for lease

agreements. However, it is important to note that there were no translation requirements in those bills this bill or the bill that was vetoed would have required

[00:49:14] that translation aspect to occur so section two is the legislative initiatives the first of which the board knows well which is the state acquisition of oak hill for the purposes of creating a state park this issue was of course brought before the general assembly last session and supported by the board and so as those conversations continue we would like to ensure that we support those conversations the acquisition costs of

[00:49:49] course were covered by the board 22 million there's also an endowment so if this becomes a state park it'll be the only state park in the Commonwealth with an endowment as well as the park was just sold to the conservation fund so another step in the direction the General Assembly would like to see in terms of making this a state park. And Madam Chair, should I stop in between the initiatives for questions or... No, no, no, keep going. Okay. We have 35 pages.

[00:50:23] The second on the legislative initiatives list is the authority to, for the board and local governing bodies permissive authority to consider power when making decisions on land use applications. And so currently, as the board knows well, there is a lawful duty for utilities to deliver power to the land applications that the board approves. It is the opinion of the county

[00:50:57] attorney that there is no individuals in the middle to essentially take power into consideration when those land use applications are being considered by the board and I've opened it up for more remarks from county attorney's office if there's anything that I missed. Mr. Rogers, anything that was missed? I'll go first if I may. Okay. Just add a point of clarification.

[00:51:25] The authority of the SEC would not be affected by this legislation. What this would do is this would give the board a legislative discretion in deciding rezonings and special exceptions and use this as a criterion to deny some of these applications based on how we define high energy user in the legislation.

[00:51:48] So I'm happy to go into any details you all would like to learn about this bill. We're going to save questions for a while, so we can keep going. The third is another issue that the board knows well.

[00:52:04] This is to establish a local rent stabilization program to stabilize year-over-year rent increases on individuals' rent. Housing advocates recently reminded me that this is now being called the anti-rent gouging legislation, And so this would be permissive authority for localities to set up a authority that would make these decisions with some exemptions for small landlords or landlords that owned more than or less than a few units.

[00:52:39] And so I believe in past legislation we've seen less than four units, and so there were other exemptions provided in past legislation that we've seen, but that is still being written as we speak by housing advocates. And then the last legislative initiative is for the removal of the cap on home ownership grant programs for employees.

[00:53:06] So this is a program that localities can utilize to give up to \$25,000 for the closing costs as well as the upfront costs on purchasing a home.

[00:53:23] So basically the code sets out a \$25,000 cap per employee from the information obtained by DHCD, who is here to answer any questions. The board helps about six employees per year utilizing this program.

[00:53:40] And so this would be to remove the \$25,000 cap and give you all the authority to decide on what amount is appropriate, especially in a locality such as Loudoun where home ownership is an uphill climb with financial hurdles at times.

[00:53:58] So those are the legislative initiatives. And I will stop you there at the end of the initiatives and ask you, are there any questions, statements, thoughts about the legislative initiatives? Mr. Turner. Well, you guys got to come with your lights a little faster, Mr. Letourneau.

[00:54:15] Okay. I was on. So, well, Madam Chair, are we voting on these specifically or? Not yet, but we will. Will we vote in Bonk or will we vote specifically on?

[00:54:30] Not voting Bonk, no. Okay. So if I want to, like, I don't support the rent control. Sure, sure, sure, sure. Should I, can I just? Well, no, we'll vote on that one. Okay. Well, we can, this is the thing. If you, the reason I don't like voting on Bunk in the legislative program is because usually there's one or two things that somebody doesn't want to have.

[00:54:48] And I'm not going to have, I'm not going to make you vote against all of it. So I can take them separately if we want to when we get there. Okay. Well, just asking the question. So, I mean, my concern here is that we'll end up seeing fewer rentals ultimately because fewer units will go into the rental market.

[00:55:04] and i know i'm sure that's been discussed in the context of this legislation but does housing staff have an opinion or have they have they evaluated any of this that's a great question or maybe even do they have any history with it do they've seen it before so that they would know something that's a great question i'll give you a little time

[00:55:37] good evening good evening i'm brandy collins housing policy administrator with dacd and air killer director i'll let brandy's been working on this all that brandy answer okay Yeah, so just to set the context, what we are endorsing or recommending is that we have state-enabling legislation that would allow statewide for rent stabilization or anti-rent gouging programs.

[00:56:03] We are not currently endorsing that Loudoun County establish a rent stabilization process. You may remember as part of the HUD pro-housing grant, we were going to study rent stabilization and see the pros and cons and the costs for the county to create such a program, a stand-up such a program, and also to identify ways that we could create such a program that would be localized and responsive to local rents, pressures, and et cetera.

[00:56:31] And it will also include some state court engagement with property owners and renters and housing advocates to evaluate if it's the right program and right policy for the county. So having the state enabling -- Sorry to interrupt. I only have 30 seconds.

[00:56:46] Has that happened yet? That evaluation? No. because of the grant being canceled, we, yes. So the grant is on hold and we could potentially. - That's a federal grant? - Yes, so that was. - That's why it's on hold? - Well, it was part of the HUD pro-housing grant and because of changes with some of the language, that part of the grant is not gonna go forward.

[00:57:09] The county is still participating in the grant. - Yeah, I guess this is my, I only have five seconds. My concern is asking for authority that we don't know if we actually wanna use. - Mr. Latourne, you can go a little longer. They take a while to come down. If you want to finish your question, that's fine. Yeah, I

guess my concern was just asking. Typically, you don't go to the General Assembly and ask for authority unless you know you want to use it.

[00:57:26] I mean, yes, you can do it in theory, but because they're going to have the debate in Richmond with a fairly specific debate on pros and cons, and I would want to be able to really speak to it. So is there another way to do the study or to evaluate this? And I'm sure other localities and stuff have had some data in different places.

[00:57:48] So we could fund it with local dollars. We could look at that issue. You know, the big thing was the funding was cut in half, basically, of the grant that COG got. So that's what reduced the amount that came to Loudoun. So there definitely is something that we could continue to study. And I know that other jurisdictions in Northern Virginia are looking at this same issue. So we're not alone in wanting to study and look at this issue.

[00:58:13] okay we'll come back and we'll try to figure out a way to figure out that that motion miss um um thank you madam chair questions in two areas um in relation to supervisor letourneau's questions in new york city i believe they have rent control and they have rent stabilization they're slightly different programs stabilization the rent can't go up more than a certain percentage year to year. Rent control, it just doesn't go up, as I understand it. Does the General Assembly

[00:58:49] anticipate authorizing localities to administer one approach, both approaches? So that's one question. In your opinion, given what we've seen in Leesburg with relatively low income housing, privately owned and operated. Additional fees have been applied to people's rents. These are to cover internet, for example, whether or not the tenant wanted it. That has been about \$90

[00:59:26] extra a month, and some of our more financially strapped residents, many of them part of the minority communities have not been able to pay those fees. So will this rent control or rent stabilization approach include fees, additional fees like that? So that's the second part of that question. My second area of inquiry is Delegate Reed warned us down at Vaco that the Commonwealth

[01:00:06] is going to have to put a lot of money into basic services that the federal government is backing away from. And that may mean, when I look at all the areas in which we're requesting funding, that may mean we don't get those funds. Do you have any opinion as to what's going to happen with our requests for funding in these situations where the feds are cutting back or eliminating funds?

[01:00:38] So I can handle one in three. So the first is that we've seen several iterations of this legislation over the years. This rent stabilization piece of legislation has been introduced, I mean, for maybe four or five years in a row or so.

[01:01:02] So, you know, one of the things that we've seen is we've seen a version of the bill that connects the year-over-year cap to the CPI, the national CPI. We've seen one that, you know, attributes it to the regional CPI that the jurisdiction sits in.

[01:01:22] You know, I think this bill has gone through several iterations to come to a compromise so that landlords are not hurt and so that developers are not hurt, but people are helped. And so I think that as this legislation continues to be considered this upcoming session, I think those are some of the conversations that are happening with housing advocates and developers as well.

[01:01:46] For the last portion of that question, number three, I think that that is in-house appropriations retreat was today. Troutman and I attended that. Senate Finance has their retreat later this week as well.

[01:02:05] Those are some of the conversations that are happening. And I think that as they continue to assess those federal impacts And as we've had the federal impacts item come to the Finance Committee for several meetings this year, you know, looking at some of the impacts from the federal government, the subcommittee, special subcommittee on federal impacts in the House and in the Senate, two separate subcommittees that have been analyzing these impacts has had Secretary Cummings, Secretary of Finance for the Commonwealth come and give reports on the financial health of the Commonwealth.

[01:02:39] Those are the conversations that are happening. And, you know, those are some of the things that we'll likely see this upcoming session play out. I think folks are still trying to figure out where they're going to appropriate certain money and to what.

[01:02:54] And so, you know, I'll also add one important thing that will happen is as the federal government, Congress, as they look at extending this current CR that runs through January 30th, the House of Delegates and the Senate of Virginia will be doing their budgets.

[01:03:21] crossover will be mid-february this year and so i think that if if there is a shutdown if there are conversations about certain cuts to certain agencies what that cr fully bakes out to be by that january 30th date or not there will be reaction by the house of delegates and the senator virginia to try to ensure that folks are taken care of in the conwell thank you thank you Mr. Turner. Thank you, Madam Chair. So we've had four sessions that have introduced some sort of

[01:04:00] rent and stabilization bill. Presumably they all failed. Did they mandate rent stabilization formulas to Commonwealth wide? No. This one doesn't mandate anything. It simply empowers localities to look at rent stabilization programs to see if they're appropriate for their individual local market. That's correct. And all four did that? No, no. So the previous sessions, The bill has repeatedly failed, I want to say, in Senate general laws.

[01:04:30] And so, you know, again, I think that as the housing advocates and developers continue to talk about what the final legislation will be and Division of Legislative Services is currently, you know, writing a whole host of bills. We'll probably see about, I don't know, maybe 3,000 bills a session.

[01:04:47] It's a long session, meaning they're developing in a new biennial budget. and the session will run for 60 days, January 14th to March 14th. So, you know, it just depends on what a compromise will look like if there is one.

[01:05:03] So I think that those are some of the conversations that, you know, will be supported by this initiative. And it's important to note that as the board annually does, unless something is requested to be removed, these legislative items are carried over.

[01:05:21] And so rent stabilization has been in the board's legislative program now for a couple of years. Last year it was a policy statement. This year it's being requested to be an initiative which would lend some additional resources on your lobbying teams.

[01:05:37] Okay. The other comments I had related to the application consideration of power is one of the considerations. You'll note that the word constrained is in quotes there. so there's going to be a lot to work out in the definition of what the definition of a regionally constrained grid is.

[01:05:53] We can keep our eyes tuned for that kind of discussion. And the other thing is I'll bet there's a fairly significant debate around delay or deny. So they may come down and say local jurisdictions can delay if there's not enough power until such time as there is enough power or define how long they can delay, or they may just say deny outright.

[01:06:15] But that's going to be we're gonna have to watch that really carefully as it goes on because there's a lot of unknowns Embedded in that in that initiative. That's all I have. Thank you. So I want to talk a little bit about the State Park Oak Hill You know there's been a lot of discussion about that for a long time and and there have been a lot of hands in this Who've helped us get get this where we are today including obviously the staff?

[01:06:41] Mr. Higgins others, but I really do think it's so important to give credit where credit is due and go back to the origin of something. The origin of this State Park and how this came to be really started from one Laura Tacroni, when she wasn't even a supervisor. She was just in my office.

[01:07:01] She was the one to drug everyone to go see it. She was the one that talked about it first when we talked about it being taken by the federal government, and she was the one that really talked about why. And so while there's been a lot of hands in this over time, and I think all the hands have been in this, I don't think that Laura has, Ms. Supervisor Crony, has got enough credit for the work she initiated with this whole discussion. And you, this wouldn't happen if it were not for your initial vision with the Delashmits. So good job, good job, Mr. Crony. I also want to say that, you

[01:07:37] know, Loudoun County has put more bills in around housing and rental stabilization than any other county in Virginia. And the reason I put forward the five most spoken languages was for the rent gouging some time ago. I do want everyone to hear this number. Between 2020 and now, rent has gone from 1,618 to 2,310 in five years. That is a 43% increase in the rent

[01:08:11] in five years. So listen, I understand that there may have been discussions about whether rent stabilization will hurt or not hurt, but we have to do something because what's happening now is price gouging, is rent gouging, and going up 42% in five years is unsustainable.

[01:08:29] And so, you know, we can't keep doing the same thing and expect different results. So we've got to figure out something else to do. And so I will be supporting this. And if there's other things we should be doing, I look to the staff and to everyone who has more experience in this to help us figure out what it is.

[01:08:45] But the gouging and the cost right now is people can't afford to live here. And that's true all over the Commonwealth. So we'll support all these. Now, I will say this. Let's go on and do the policy statements.

[01:09:02] If we want to, we can take the policy statements separately and then take the legislative initiatives, take any out that we want to so anyone can vote on those separately because we don't want to have people just have to vote for or against everything at one time.

[01:09:17] I know that's not what you all want either. So let's go on and go through the policy statements real quick, and then we'll take those in bulk. Absolutely. So I'll highlight a few of the policy statements here. There are a whole host of them, the first of which talks about the Tier 4 backup generator requirement.

[01:09:39] This relates to one of the JLARC recommendations that the board put in the legislative program December of last year. This simply adds to the end of that, the last sentence, after furthermore, support enacting such a requirement through phases consistent with equipment that is readily available in alignment with U.S. EPA standards.

[01:10:04] And we have Buddy Reiser here to answer any questions on that one if anyone has any. One of the other things that, and it relates to something that we were discussing earlier that I just want to highlight as well, is safeguard federal protections.

[01:10:26] And so this talks about supporting measures by the Commonwealth related to cuts to Medicaid as well as FEMA. I think there's a grant administered by FEMA that was cut as well, which is most know it by UASI.

[01:10:43] That's the acronym for it, but it's the Urban Area Security Initiative. We also added in for a more broad statement as well and other federal funding cuts. Again, there will be a lot of discussion and has been already by the state legislature on what they will be able to cover from these cuts and impacts coming from the federal government.

[01:11:11] So the other is related to the exhaust system in good working order. There have been several issues related to excessive noise from vehicles. So vehicles that have aftermarket mufflers or have just completely removed the muffler in general and repeat offenders.

[01:11:34] And so this seeks to aid law enforcement and their enforcement of what is already in the code related to excessive noise from vehicles as well as cutting down on repeat offenders who I believe can avoid court by a prepayable offense.

[01:11:52] And we have our county attorney, county attorney's office here to answer any questions on the legal front on that. But that's, Madam Chair, some of the overarching policy statements related to that section. Okay. Supervisors, thank you, Mr. Freeman. Thank you, everybody.

[01:12:10] Supervisors, we have four policy statements on the day as to be presented tonight. So instead of taking them all one by one by one, which would take a very, very long time, how about this? How about I go to each supervisor who has a policy statement, you take a minute or so and say what it is and say why, what you're trying to do.

[01:12:34] In the end, if somebody has an objection to any one of them, we can take that one separately. Otherwise, we will accept all the policy statements and then vote on all the policy statements, including the four that are on the dais right now. That will move us along a little faster to get the policy statements through.

[01:12:51] Because what I'm looking at right now, Supervisor LeTurne, Supervisor Rixman, Supervisor Tecroni are all policy statements as I'm reading them right now, if I'm reading them correctly. So let's do it like that so it just gets us through this a little faster and we'll just roll these in. I'm also going to assume that as you've done this, you've, well, no, we haven't had our dinner yet, so that's fine.

[01:13:14] It's fine. So, Mr. LeTurne, do you mind going first? Just kind of explain what you're here to help. I don't mind. I do have a question. Point of clarification. Are we going to have questions to staff on the policy statements? Are we going to go straight to motions? Well, can you ask a question in a motion? Well, my questions are about a totally different potential policy statement change.

[01:13:32] Okay, well, let's do these first. Let's do something already in the item, a policy statement change in the item? Yes. Oh, okay. Then let's do questions first. Yeah, and I have one on one of these. Okay, let's do questions. Okay, let's do questions first.

[01:13:48] All right, then let's do questions first. If you have questions about policy that's in the item right now, let's go to those first. Ms. Bricksman. Thank you, Madam Chair. I was wondering if staff or the Legislative Committee considered the Environmental Commission recommendations on the 2025 legislative program.

[01:14:08] They sent a letter. Yeah, I don't think those were, they sent a letter since the letter's program's already been written, so we did not. Okay. Okay. So in particular on transportation, they recommended an addition to paragraph one on the transportation priority statement that would include multimodal improvements to support a connected bicycle and pedestrian pathways. So that's the other policy statement change that I was interested in making. Do you have that on the dais right now? I don't. Sorry.

[01:14:49] Yeah, I mean, I'm not going to bring policy statement changes on the dais right now. They're not already up here. This is our first meeting, not our last. We will have it over time, so we'll do that later. Okay, all right, thank you. Anything else?

[01:15:05] No? Just my, do you want me to talk about this one? Because I think we have other questions. Mr. Letourneau? Yeah, the education policy statement. So if you look at our education policy statements, they're all about funding formula and things like that. We don't have any curriculum type of things because we're not the school board. So it's not that I oppose this, but I would be a lot more comfortable if we just took this out and then asked the school board to put it in their policy statement, because I don't think it's in their legislative agenda.

[01:15:33] I don't know if they've finalized it yet, I don't think they have, just the draft one that we could find. But I just don't want to get into curriculum discussions up here, because that goes a lot of places, and we have enough. And I think that is a curriculum statement.

[01:15:49] Yeah, I do too. I would agree with that. So I would prefer to not have it in here, but instead for perhaps the chair or the board to request the school board to add it into their agenda. I'll speak on that. I think that makes sense because that is a curriculum statement.

[01:16:06] You're right. But I'll speak on that and have it do that in just a second. Okay. Mr. Crony? So, yeah, I have a question about the Tier 4 backup generator requirement. So we know it's cleaner. two or four generators, but I'm wondering if we should add something about non-emergency situations, the use of them in non-emergency situations, because my understanding is they're being used more and more in non-emergency situations, and if they run continuously,

[01:16:42] you know, they make a lot of noise, and they aren't 100% clean, you know, they do have an impact on human health, particularly near schools and residential. So I'm just wondering if we should say, you know, we agree you should have the Tier 4 generators, but there should be a limit on their use in non-emergency situations. I fully believe that we should require the Tier 4 generators or the equivalent. Oh, absolutely. I am not aware of people running generators that

[01:17:17] are outside of emergency other than testing our generators typically run less than 10 hours a year but I'm happy to ask around I don't know I'm not aware of that situation that happening okay yeah I have a situation in my district that happened in a non-emergency situation but okay well I was just asking

the question because I know they're cleaner but that doesn't mean you run them continuously it should just be for emergencies so i just want to make that that point of clarification i'd love to get with you on that because it doesn't make business sense to run

[01:17:55] them yeah but but i'm happy to find out more from you okay thank you mr the vice chair turner thank you madam chair uh along those lines mr riser um uh doesn't the eq or the state code limit testing periods of time and amount of testing they can do each month already it does yeah that's what i thought that's what i thought so if they suddenly start operating in a non-emergency mode is baseload power without any telling anybody they're violating code they are right okay um madam chair i'm not i'm not sure how you want to handle this and maybe not at all um i'd like

[01:18:34] to amend this policy statement in a fairly minor way where well which policy statement the policy statement on the tier four generators. Oh well we'll get there when we get to them get to the motion if it's fairly minor. I would I would say Mr. Turner that is a very good catch. That is a curriculum item. What I would what I would propose is that we do take it out of our program make a motion to send it to the the school board with a with a with a statement of support to to what they're trying to do. So we're supporting what they're trying to do but but we send it to them to do it. So that's what I would recommend that we do on that one. And I can wrap all those things

[01:19:14] maybe up in one motion. At least we're going to try. Okay, but until we get to there, let's have everyone go through their policy statements as they exist right now. How about we give everyone like one minute, 30 seconds, see if they can get done in that period of time. I think they can. I believe in you. 30. One minute and a half. I believe in you. Let's go. Mr. Letourneau.

[01:19:36] All right, e-bikes and scooters, you've heard lots about it. The Sheriff's Office has a really great presentation on this. There's been a lot of discussion with the delegation about this. Staff is not ready to make specific recommendations yet. I think there is not entirely alignment between the Sheriff's Office and what we're looking at on some of the penalty questions.

[01:19:56] I think there's going to be multiple bills on this. I'm aware of at least one, but probably two that are coming. Rather than us getting mired into those specific pieces of legislation, I am proposing just a policy statement that asks for legislation or supports legislation that defines and classifies the types of electric vehicles, because, as we've learned, there's wide variants, where they can be utilized, what the appropriate age for operation is, and introduces safety education for juveniles.

[01:20:27] Those are components that we've talked about. I think they're going to be present in a lot of the legislation. Obviously, our team up here and there will evaluate these bills as they come forward, but this would just give staff the authority to work on these specific bills, support them, and we can address some of those specific details.

[01:20:46] We know there will be a legislative process. Great. Does anyone have any questions, Ms. Letourneau? Anyone have any objection to it? You're good. I'll wrap it in. Ms. Tocroni. Okay, so mine is about solar.

[01:21:02] So on May 1st, Dominion Energy filed its petition to the SEC to change Dominion's Net Energy Metering Program, and they proposed a nearly 50 percent reduction in net metering, which will severely diminish the value of rooftop solar.

[01:21:19] Ladin County filed a notice of participation in the case by the September 30th deadline, and the SEC has scheduled a hearing on January 20th. my motion uh says that we support net metering for uh accessory solar facilities which would be the rooftop solar um and and you know the solar at um parking parking lots um and support participation in dominion dominion energy's petition to revise its net metering program the benefits of net metering net metered solar as it grows energy and energy independence it

[01:21:59] It enables consumers to generate their own electricity. It protects residents from rising utility costs and electricity bills, which is particularly relevant as Dominion's new integrated resource plan predicts nearly a doubling of electric bills in the coming years.

[01:22:17] And we all know data center driven demand has pushed our grid to the breaking point. Rooftop solar, when paired with storage, can supply backup power during grid outages. And so rooftop solar is a way that the state and county can help residents offset the negative impact of some of these benefits that I just brought up.

[01:22:42] And so that's number one, is that one. Then number two. Give me another minute and a half. Do you want me to go back to number two? Yes, I do. Okay, so number two is, I've been speaking with Delegate Reed about adding up legislation to provide state-level tax credits to incentivize residential and commercial accessories, solar, and battery storage.

[01:23:10] And it makes sense to increase incentives for rooftop solar when power is critically needed and energy costs are increasing. with the passage of the one big beautiful bill. Residential solar systems must be installed by December 31st to qualify for federal solar tax credits. In 2026 and beyond, there will be no federal solar tax credit for residential solar energy systems. South Carolina, a very conservative state, has a solar tax credit that allows taxpayers to deduct 25 percent of the cost of a solar energy system from their state income tax.

[01:23:48] So other states are doing it, and I think it makes sense to offer a potential benefit for solar with a solar tax credit at the state level. Okay, I think there's going to be some questions on that one, Mr. Crony.

[01:24:05] Okay. Let's start over for net metering. Does anyone have any questions on her net metering? You do? Yes. Okay. I don't know if I'm going to call it a question, but... Well, statements, question, whatever. Yeah, I don't support this item. So the issue with net metering can be that it does not account for the full costs of the grid, hookups, and infrastructure that still has to be built to support the solar components of it.

[01:24:32] So what Dominion has done is suggested a change to the formula that better accounts for the actual costs. The reason they're doing this is because they will raise rates on non-solar customers as a result of the net metering program.

[01:24:48] That's how the program works. So we've had this debate here before. This is a highly technical issue. I don't think the county should be weighing in on this. I don't think we really have the expertise to weigh on this in a meaningful way. I wouldn't want us to participate in the Ray case either. But I would have real concerns, and it's been proven in other places that have net metering, if it's not done the right way, it will raise rates of non-solar customers.

[01:25:13] So Dominion has a net metering program. They're making adjustments to it for a reason, to try to keep electricity rates stable, and that is, to me, beyond the scope of what we really need to get into. If we

did, I would probably oppose it, so I would not want to add this one.

[01:25:28] How about solar tax credits? Anything on that? I don't have anything on that. Okay. Mr. Sainz. Thank you, Madam Chair. I actually had a question regarding the solar tax. Hopefully, some of our experts down here could answer the question.

[01:25:44] question to Mr. Crony. Mr. Crony, have you talked through this with staff yet? Do they know? Yeah, they have. Okay, all right. All right, so, like, for example, we have Solarize, which is a very popular program. How are the solar credits work with or work against the Solarize program that's already in place now, if anybody knows that answer? You mean Solarize Loudon? Solarize Virginia, that's from MVRG, yes, but yes, yes. I could come back with some more information.

[01:26:17] I'm not sure. It's already in place now, so nobody... Can you answer that question? Well, this is about a state-level tax credit. This isn't about NVRC. So this is about a state-level tax credit. Correct. Well, NVRC has a very well-run program that gives tax incentives to Loudon, Fairfax, a whole lot of jurisdictions in our area, which is Region 8 NVRC.

[01:26:43] So my question is, how would that work with or against that program? Well, I think it would work with it, because this would be an addition. How so? I didn't look at NVRC. I was just looking at state levels. So then you don't have the answer. No, I didn't look at MVP.

[01:26:58] Okay, so right now I could not support that, nor could I support the net metering coming into the program as of right now without more information. Thank you. Mr. Turner, did you have your light on earlier? No, okay. So I'm setting this aside. I'm setting, Mr. Crony, I'm setting yours aside because we may have to take these policy statements separate.

[01:27:19] Okay, all right. You want to turn your light off, ma'am? Ms. Brixman. Thank you, Madam Chair. Just a point of clarification. So we don't have to make the motions. You're going to make the motions? I'm going to make the motions. As long as we have consensus. Okay, great. So mine is about a bill that I worked really hard with, with Delegate Reed and actually Mr. Wirtz last year that would add a permissive local authority to separately classify electronic, electric and battery powered landscaping equipment and provide a lower personal property tax rate for that property, basically for business owners who run landscaping companies.

[01:27:55] So it was passed. We also worked with stakeholders. There's an association for lawn equipment folks in the state. We worked with stakeholders who were fine with this. Like I said, our Commissioner of Revenue was on board with this bill.

[01:28:14] I'm going to be meeting with Delegate Reed tomorrow to see if he is able to carry the bill again. And so I would just love my colleagues' support on it. Also, we did support the bill through a motion last year. Once the bill came forward, the board supported it. So this is just an effort to put it in our policy statements since we supported the bill last year.

[01:28:35] Thank you, Madam Chair. Thank you. Does anyone have any questions for Ms. Briggsman? Does anyone have any issue with this? You have a question? Yes. Thank you, Madam Chair. Supervisor Briggsman, have we gotten any reading from Commissioner Wirtz about the separate personal property tax classification?

[01:28:50] Is it doable? Is it too complex? Oh, 100%. We had several meetings with him last year as we were writing the bill, and he's fine with it, understands that we can do it, and kind of told us how. Good. Thank you. Mr. Turner, on the policy statement regarding the Tier 4 backup generators, you had something you want to change on that?

[01:29:11] Yes, ma'am. It's a friendly amendment to just eliminate the phrase inside the parentheses of the statement. Basically establish a requirement for Tier 4 generators. In the very next sentence, we establish that we're going to support enacting such a requirement through phases consistent with the availability of the equipment.

[01:29:29] Tier 2 generators will select with catalytic reduction, achieve the emission standards of Tier 4, but they're noisier and they're not state-of-the-art. And if we're going to establish a phase-in schedule in the next sentence anyway, why don't we just establish a phase-in schedule for the Tier 4 generators? What are we moving? I'm sorry.

[01:29:45] You're moving the words inside the parentheses. Are their emissions equivalent or better? or their emissions equivalent or better, which allows data centers that have tier two generators to just add selected catalytic reduction, but they're really not the same. I have a question. We'll call them just a second.

[01:30:00] Mr. Reiser, any issue? Yeah, I think that there's a challenge for the industry to call it tier four without having some equivalent seeds. But I would have to get back to you on specifics around that. Mr. Turner, do you have any headaches if we leave it in?

[01:30:19] No. Okay. It's not worth falling on my sword. Okay. All right. Very good. All right. So let me try this. All right. Let's see if I can get it right. I move that the Board of Supervisors accept the policy statements and the legislative initiative for the draft 2026 legislative program with the additions of the two policy statements, one regarding bicycle scooters and other high-speed electric devices,

[01:30:54] and one regarding tangible personal property taxes for electric power landscaping equipment under the tax revenue section of the priority statements. I further move that the policy statement on education is removed from the program and forwarded to the Loudoun County School Board with a statement of support from the Board of Supervisors. I think I got it all. Okay, I think I got it all. That motion was second. Sorry, Madam Chair. I have a friendly amendment on the Well, wait, that motion was seconded by Supervisor Bricksman.

[01:31:30] Thank you, everyone. That was well done and hard. Mr. Crane, we'll go back to yours in just a second. I have no issues with any of these. I think they're great. I think they would have been great if you had to give them to John.

[01:31:47] A long time ago, they would have been great then, too. Not an issue. But I think everyone, I think these are rolling. I think sometimes when we have these initiatives and stuff, you don't think about it until later. For reasons like Ms. Briggsman just said, the Environmental Commission gets together and they show us something after a time limit has passed.

[01:32:05] So, you know, if we can roll them in, we try to do that. So I do want to thank staff, Mr. Freeman, Mr. Quintine, Ms. McClellan, who's not here, everybody else from Mr. Rogers' office, thank you all very much. And I want to thank the other legislative team member, Supervisor Mr. Sains.

[01:32:24] Mr. Sains, do you have a comment? Yes, briefly is that for Mr. Freeman and his team, if we can make sure to reach out to the Environmental Commission next time to remind them of when our deadline is so then they can get their stuff well in advance so we can go through that whole process or add it part of our review process.

[01:32:47] That's it. Mr. Turner. Thank you, Madam Chair. The only question I have, and if it's open for a friendly, is, so our motion is to move the education policy statement as a recommendation to the school board to include it in their policy statements.

[01:33:04] What happens if they don't? And they don't. Then it just dies. It comes out of ours, and it doesn't go in theirs. Can we make a contingency that if they don't include it, that we can include it in ours? The reason I wouldn't accept that, and we can make a separate motion if you want to, The reason I wouldn't accept that is because it is curriculum, and as much as I support it, and I think it should happen, which is why I made the recommendation to say we support it, it's not the supervisor's job to make curriculum.

[01:33:31] And so, you know, I think if we start going down that path, it gets very, very dicey, so I wouldn't accept that. I concede the point. Thank you. Anybody else? All right. On 5th, please say aye. Any opposed? That motion will pass 8-0-1. Let's go to Supervisor De Crony's policy statements.

[01:33:49] Mr. Crony, would you like to make these or would you like to table these until you get more information and things on them for later? Can I table them for the December meeting? You can absolutely make a motion to table these for the December meeting. Okay, I make a motion to table my policy statements to support net metering and participation in the Dominion Petition and support solar tax credits until the December 2nd Board of Supervisors Business Meeting.

[01:34:20] I will second that, and there's no discussion on a motion to table, so all in favor, please say aye. Aye. Any opposed? That motion will pass, 801. Now we have to go back to the legislative items. OK, let me just try it this way. I'm trying to get us through this as fast as possible.

[01:34:39] With the exception of the rent stabilization issue, did anyone else have any issues with any of the things in the LEDS program as you see them right now? I just have a question about, it's not new language, but it's existing language? Sure. OK, can I do that now?

[01:34:54] Sure. So the question's on, the way that we've framed our recommendations on, we'll call it data centers, but electricity data centers, is still all through the JLARC study, and I guess my question is whether that's still the right way, obviously we're not gonna necessarily reframe all these on the fly up here tonight, but whether that's still the right way to approach it, because that study's now a year old, I don't know if the General Assembly is still thinking about these things the same way.

[01:35:29] Particularly as we get into the question about, on recommendation five, which is on page 13, Directs Dominion Energy to develop a plan for addressing the risk of generation and transmission infrastructure costs being stranded with existing customers and supports legislation that creates a separate data center rate class and the adoption of new allocation methods.

[01:35:49] Do we need to be a little bit more explicit? So I think in the year since, Dominion has proposed a new rate structure. I'm not sure. I think there's some debate about whether that structure goes far enough from our point of view. But this just seems kind of dated to me in terms of how we're approaching it.

[01:36:06] I would probably want to be more explicit and simply say that we're looking for data centers to shoulder a greater percentage or share of cost of electricity. And it's not. We already have that policy position on underground power lines. But as a whole, we're starting to hear a lot about electricity cost increases and concerns, that kind of thing.

[01:36:26] So that's my question, and I'm curious to get staff's thoughts on other thoughts on whether we should sort of change this a little bit. Including you, Mr. Roger, if you'd like to. I guess I can start. I mean, I think that there's a lot of reasons that energy prices are going to be going up because of the need of generation and transmission and stuff, well beyond data centers.

[01:36:49] But that said, I think that it is important to, in my opinion, to refer back to the JLARC study because I think most of the General Assembly is going to be referring to the JLARC study for this upcoming session, as I understand it.

[01:37:06] But I do believe that we should be specific to protect rate payers at all costs. And I think the industry is supportive of that as well. So I think specificity would be fine. And I don't know how we would reach that, but smarter people than me are up here doing that.

[01:37:24] Well, yeah, and also perhaps reflecting, I mean, I don't know all the details on that rate case and where it stands and things like that, but it does seem relevant to this. So perhaps we could ask staff to, you know, for tonight this is fine, but perhaps work on whether there's some greater specificity to this language that would get to where the board's trying to get to, which is, I think, to protect right payers ultimately against higher costs from data centers.

[01:37:51] First of all, I would agree with that. Secondly, I've heard Governor-elect Spanberger talk about that, and so it would be nice to be in line with the incoming governor right away because I've heard her talk about those things. Yeah, so that's direction that the entire board, as we see here right now, is fine with.

[01:38:12] Yes. Okay, Mr. Letourneau, would you like to move anything out of this item before we before I make a motion I can do that I can yeah I would I would prefer not to have the rent stabilization item in here so I move the board supervisor sure no I can do that adopt the draft 2026 legislative program is found in attachment one the legislative initiative on the oh nope that's not what I'm trying to do well madam chair one other thing we also have separate as attachment to yes the statement so is that part of this motion are you going to do that I had that written statement.

[01:38:43] I had that written separately. Obviously, I would want attachment to separate as well. I did that very purposely for that very reason. I'm with the board supervisor to adopt, and thank you, Mr. Freeman, for being so diligent about that. I'm with the board supervisor to adopt the legislative program, found attachment one, and the legislative initiative.

[01:39:02] Okay, where's my – I keep getting to the – oh, it's not the second part. It is the second part. no it's not it's still there so okay so let me try to fix this on the fly the best i can

[01:39:32] i move the board supervisor to adopt the 2026 res program and find as as found in attachment one um to the november 18 2025 board supervisor's business meeting action item with the deletion of the rent stabilization item and then I'll stop it, wait, well, and not to include any

[01:40:07] legislative on reproductive rights that is found in attachment to the November 18, 2025 Board of Supervisors' Business Meeting action item to the December 10, 2025 Board of Supervisors' public hearing. So that's the motion. just did was I moved everything except rent stabilization and reproductive rights. I moved everything else. I will take those up separately after we pass this first, all right? All right, that was made in second by Supervisor Sainz. Discussion on that? Seeing none, all people say aye.

[01:40:44] Any opposed? That motion will pass 801. Okay. On the rent stabilization, I move that I just lost it. Okay.

[01:41:15] I move that the Board of Supervisors support enabling registration for locality to establish a rent stabilization program and place it in the draft 2026 leadership program and advertise the draft 2026 leadership program for the December 10th, 2025 Board of Supervisors public hearing. motions made and seconded by Supervisor Sainz. By the way, Supervisor, I'm going to give most of these Supervisor Sainz because he's the other person on the ledge team with me. So he'll get most of those. That's why. Okay, so Mr. Letourneau, I understand and respectfully disagree with what you're saying, of what you said earlier. I did ask and I did not hear that

[01:41:52] in the past, rent stabilization has caused less rentals. If that is true, I want to know that. But right now, what we know is true is the 43% increase in five years in rents. And it is unsustainable. And I am, I mean, and Loudoun is a fairly expensive pain to live in anyway.

[01:42:15] And I am concerned with the inflation that we're seeing right now and other issues that we have to figure out some way to have some type of rent stabilization. And the other thing is, it is much, much, much, much more expensive to have a family removed from a home and then have to figure out how to help that family when they're no longer in a safe home or someplace safe. And so I will, Mr. Letourneau, go try to do more research on what you just said, because I don't know that that's wrong. Well, I should say it differently. I don't know that

[01:42:52] you're incorrect and so if that is if that is something that information you have something send it to me I'd like to see it but as of right now I know what I'm looking at and so I need to vote on right now what I'm looking at and if I if I feel later on that I got something wrong I'll come back but right now I need to I need we need I need to I believe that we have to have some type of I think it's with some set that says stabilization and control of two different things and I think we do have to look to try to have some stabilization right now so I'm that's that's why that motion's been made. Mr. Letourneau? Yeah, so in the same period that rent increased by 43%,

[01:43:28] the assessed value of a home went up by 55%. So it's not surprising that rents went up so much because home values went up. We have an overall affordability problem, a really serious one that everybody knows. I'm not sure that an artificial cap is really going to address the root of the problem, but I do think it could lead to taking units out of the market completely, which will then only lead to exacerbating the problem of availability of housing. But I don't know either

[01:44:02] for sure, which is why I'm just not particularly comfortable voting on it either way right now and asking the General Assembly to give us authority that I don't know what we would do with and what I want or what the right policy solution is, because it doesn't sound like we've really done much of our own analysis on it yet. So I just think it's premature. Now, I'm sure the General Assembly is going to have this discussion anyway, with or without us, and it may be that we can weigh in or evaluate those bills and listen

to the debate and form a position based on that. But at this juncture, I wouldn't be ready to vote affirmatively for something or asking for that

[01:44:39] authority when I'm not sure it's the right approach. I'm fairly sure the General Assembly does nothing but wait to see what Loudon does before we move, right? Isn't that what they do? No? No? Okay. Ms. Bricksman. Thank you, Madam Chair. I'm fully supportive of this, and it doesn't worry me because it is giving local governing bodies permissive authority to work on this issue in a way that we see fit for our jurisdiction. So it's not like we're saying yes or no in

[01:45:13] this moment that we are going to enact some sort of zoning or some kind of law or whatever that we're going to start capping or stabilizing rents in Loudoun County. But, you know, affordability is one of our key issues across the county, across the state, and across our nation. And I think that we need every tool in our toolbox to start working on it. So I'm fully supportive. Thank you, Madam chair vice chair turner thank you madam chair i fully associate myself with supervisor brisbane's comments that was going to be my comment as well we're not voting on the the merits of the program

[01:45:50] we're voting on whether we should have the authority to use every tool in the toolbox if the situation suggests we should use that as a tool so i'm fully supportive uh madam chair can i ask the county attorney a question on the legality yes sure um mr rogers if if we established a rent stabilization program and capped rents in Loudoun County. Is that the financial equivalent of a change in zoning that amounts to a taking? If someone has started a rental property specifically forecasting a certain amount of income and we establish rent stabilization, have we in fact taken them financially, taken their property financially?

[01:46:30] Supervisor Turner, I do not believe so. That case has never been tried in Virginia. I would say it is not in violation of the U.S. Constitution. Okay, thank you. So what I would say in closing is, Mr. Attorney, you might be correct that home values went up by 55%, but renters don't get the benefit of the home value going up by 55% because they don't own the homes.

[01:46:53] And homes get sold, and that doesn't mean anything to a renter. So I understand the financial reason you said that, but as far as the benefit of the renter, they don't get a benefit. And so I just, you know, I just think if we really want to see an expense, we start seeing people lose their apartments, lose their where they're living.

[01:47:17] And then you're going to see a real expense on the county that we're not going to be able to sustain on top of all the things that are already happening. Mr. Kirshner, we're voting on writ stabilization. Since you just got here, you can vote. You can not vote. You can stand. I don't care what you do. But you know we're voting right now.

[01:47:32] I get a vote? No, no. You can sit here. All right. I made the motion. Supervisor Sane second the motion. I want people to say aye. Aye. Opposed? No. All right.

[01:47:59] That motion will – he's right on time to say no. That motion will pass 7-2. Supervisor Turner, sir, about the cursor, voting against the motion. All right. The final motion on this is – I move the Board of Supervisors direct up to advertise – Ms. Prickson, would you like to make this motion? It's fine with me. You just want me to make the motion on Attachment 2? Yeah, I want you to make the I further move part of that motion. Never mind, I got you.

[01:48:15] I move the Board of Supervisors direct staff to advertise the 2020 draft legislative program to include initiative on reproductive rights found in Attachment 2 to the member of the November 18, 2025

Board of Supervisors public hearing meeting action item for the December 10, 2025 Board of Supervisors public hearing.

[01:48:35] All right, so the reason this is separate, and Mr. Freeman, I so appreciate your sensitivity to this, is because I have colleagues who I greatly respect who just do not believe this should be something that's in our program.

[01:48:55] It's not even whether they thought it should be happening or should not. They only leave the loans in the program. And so we separate it out so that no one has to vote against the whole program. I understand that feeling and that thought, except for the fact that what I believe happens is that then the cost of this falls back on the county.

[01:49:17] The cost of having all the issues that happen when women don't have reproductive rights falls back on the county. I also know that when we say reproductive rights, one thing pops into somebody's head.

[01:49:33] but reproductive rights is not just one thing. It's a lot of things. It is all types of medical treatment. It is therapy. It is birth control, which I'm not sure anyone can be against that.

[01:49:50] And so, yes, it's one thing, but it's not just one thing. And so, while I understand my colleagues, I think that all the other things do fall under a county purview, especially under a county health department. So further discussion on this item? Yeah, I mean, you stated it, but I just wanted to state for the record that my objection is it remains that ultimately I think our legislative program should focus on the areas that the county has unique expertise and a perspective that oftentimes the General Assembly, for as much as we go, we joke, does care what localities think.

[01:50:30] This is an issue that every single person who's been elected the General Assembly has a position on. Nothing we say is going to change it whatsoever. Many of our residents and citizens have deep thoughts on this issue. So I would just prefer to not include those types of issues, any type of issue like this, either side of it, in our legislative program.

[01:50:50] Thank you. And you have been very consistent about this. Ms. Brooksman. Thank you, Madam Chair. I'll just associate myself with your comments and remind my colleagues that we do have a health department. We have a family services department. and um freedom is freedom you either want people to have freedom to make choices about their lives and their bodies or you don't um and if you don't you can vote no on it thank you madam chair all right um i make the motion if i suppose briggs we second the motion on paper say aye oppose that motion will pass 7-2 with mr um letourne and mr kirschner voting against the

[01:51:29] motion all right we can go on oh my gosh we got through it yay good job very good job everyone wow that was that was okay we did okay on that one um we can go on and do our um resolutions right now because it's past 5 30 we have two resolutions i don't have anything in my hand from my staff i don't know where they're at right now not my staff but the actual resolutions

[01:51:54] I think the ones are from, I'm not sure if I have it, actually it's from Ms. Umstadt is one, she'll join me down front, and the other one is Mr. Kirshner and Mr. Crony, and I think most of the Loudon Wine Guild is here today with us, and they're going to also join us down front.

[01:52:14] So, where did Ms. Umstadt go? She just went over there to get the resolution. Oh, okay, I will join her down front, and then you'll join me down front, Mr. Crony, okay? Perfect.

[01:52:44] Mr. Clemens, we're going to do you first. Why don't you come on down and bring anybody who you want to bring with you on down.

[01:52:59] We have a proclamation for one of our favorite elected officials in Loudoun County and his wonderful team.

[01:54:03] Whereas the Commonwealth of Virginia celebrates the month of November as Virginia Archives Month to acknowledge archivists who help protect and make accessible the records of our actions as individuals. and our actions as part of a society, and to raise public awareness about the importance of preserving and sharing cultural and historical documents from families, communities, states, and the country at large, and whereas the Clerk of the Circuit Court maintains a vast collection of public court records that provide significant information about the history of

[01:54:42] Loudoun County and the people of Loudoun County, and whereas the records preserved and maintained by the Clerk of the Circuit Court represent 268 years of Loudoun County history by virtue of deeds, wills, land books, court order books, criminal and chancery records, plats, digital records, and numerous other unique public documents, and whereas the Clerk of the Circuit court and his deputy clerks are dedicated to responsibly preserving these records, enhancing

[01:55:15] access to these records, providing education programs to promote awareness of archival records, and developing partnerships with other public archival institutions and organizations to empower Loudoun residents.

[01:55:34] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim November 2025 as Archives Month in Loudoun County and recognizes the significance of the management, preservation, and retention of archival records in the office of the Clerk of the Circuit Court.

[01:55:54] And I would just like to add one comment. Recently, our clerk of the circuit court, Mr. Clements, went to a lot of effort, and I'm sure your team did as well, to find the deed for Providence Baptist Church, the second oldest African American church in the town of Leesburg.

[01:56:18] it had been missing for decades maybe for a hundred years maybe for 200 years but you guys found it and you delivered it to the church and that happened very recently and i think that was just a wonderful example of the great work you do thank you before i i hand the microphone to you my friend i i want to say this you know you don't get 268 years of history in the state like Virginia without there being some history that's not particularly pleasant to look at or to

[01:56:56] know about. And I have been very grateful that when you archive, you're archiving history, you haven't tried to keep anything back. You've presented it as it was, sometimes with comment, sometimes without comment, but always factual comment. And I've really appreciated that, especially in a time where there's a lot of effort to change or remove history. You haven't done that. And there have been so many groups who have come to you with the help of your amazing staff because they know that what they're going to get is factually correct

[01:57:31] history, whatever that might look like. And I appreciate that a lot, Gary. Thank you so much for that. Well, thank you, Supervisor Elmstad and Chair Rand on the board for this resolution. I share this

with part of my team. A lot of my team could not be here tonight. Let me introduce my team. To my far left is Laura Boudreaux, my chief deputy for international internal operations, Celeste Brinkhouse, who works in our historic records division. To my far right is Leslie Kelly, my jury manager. Next to her is Shannon Fuller, also from the historic records division, and then our historic records manager, Eric Larson. While we're talking about history,

[01:58:10] we also need to talk about the present, because what we're doing today is going to be history. That's why I asked every member of my team who manages public records and retains public records, they're going to be part of history and the future. So I wanted to make sure everyone on the team could be a part of this resolution presentation.

[01:58:27] We've heard the expression, knowledge is power, and that's a true and accurate statement. And we're pleased and privileged to be able to keep the public's records, to enhance public access to those records. And in doing so, our hope and our goal is that we are empowering people with more knowledge.

[01:58:45] And you have my pledge that we're going to keep doing this. So thank you for the opportunity. Thank you, board, for this wonderful resolution. And we look forward to working with you and our citizens in the future. Do a picture.

[01:59:22] You're good. Show them, though. There you go. There you go.

[01:59:46] Okay.

[01:59:59] Amen. Thank you, Gary. Thank you. Absolutely. I meant every word of it. It's true. It's true. Mr. Crony and Mr. Kirshner, come on down. And everybody here from a what?

[02:00:22] Yeah.

[02:00:23] Reading this in a bit of a roundtable.

[02:01:03] Are you taking lead? Mr. Crony's taking lead. I'll take the lead. Mr. Crony's taking lead, and then you, and then I get the end. I thought I was first, but that's okay. Mr. Crony's first. Somebody come on this, more on this side?

[02:01:19] A couple people more on this side? Yeah. Okay. All right, Mr. Crony. By the way, if you ever want a good time, go to Loud and Wine Awards. by the end of the night people are having a very good time by the end of the night all right thank you all right i'll start the uh resolution oh goodness yeah we're reading it are you going to introduce anybody oh you do we want to introduce we could do that or we'll do it afterwards okay all right all right all right so um this is uh the resolution for the loudon wineries and uh wine

[02:01:56] growers. Loudoun County, Virginia resolution honoring excellence in Loudoun County's wine industry 2025 Loudoun Wine Award recipients. Whereas Loudoun County is home to more than 50 wineries and tasting rooms forming the heart of DC's wine country and contributing significantly to Loudoun's agricultural heritage, tourism economy, and rural character. And whereas the loudon wine awards hosted annually by the loudon wine wineries association celebrates the x

[02:02:30] exceptional craftsmanship and agricultural excellence of loudon's winemakers vineyard managers and industry professionals and whereas i get to try to pronounce these grapes whereas the 2005 loudon wine awards recognize the following outstanding achievements um and i'm going to give an

abbreviated version from the actual motion but it says whereas uh the chairman's grand award the walsh family wine chenon blanc correct um the winemaker of the year was kent aren't i just want

[02:03:07] to make sure i got it right okay aren't uh walsh family wines wine ambassador of the year was casey luther two twisted post winery best of class awards winning in two classes sparkling and sweet classes, Iron Wheel Winery. Sauvignon Blanc and Cabernet Franc classes, 868 Estate Vineyards.

[02:03:27] Chardonnay and Petite Verdot classes, Lost Creek Winery. Merlot and Verdot Blend classes, Bro Vineyards. The single class winners included Alba, Albarino, correct? I just, yeah, I got it.

[02:03:42] Thank you. Thank you. Very good. And you don't even drink wine that much. Yeah. Good Spirit Farm and Vineyard won that. Vionnet, there was a tie between Third Culture Kid Winery and Zephaniah Farm Vineyard. So many winners, we've got to go to a second page here. The Petite Mansung Domain Frontier Vineyards, White Hybrid was won by Willowcroft Farm Vineyards, Rose by Fabioli Cellars, Red Hybrid by Cana Vineyards and Winery of Middleburg, Red Vinifero, is that right?

[02:04:20] Vinifero, sorry, got to get that right, Green Hill Vineyards, and the Tenant was by Carriage House Wineworks. Cabernet Sauvignon was won by October 1 Vineyard. And, Chair Randall. And whereas the distinguished producers embody the spirit of Loudoun County's agriculture, combined innovation, stewardship, and artistry to create wines that elevates Loudoun's standing on the national and international wine community.

[02:04:48] Now, therefore, it is resolved that the Loudoun County Board of Supervisors hereby congratulates and commends all the 2025 Loudoun Wine Award winners for their outstanding contributions to the county's viticulture economy and cultural heritage.

[02:05:04] thank you so let me say what i said at the wine awards um uh what i the thing about loudon's wine community is obviously everyone wants to do well in your own vineyards but you do not find an interest an industry that has this much um cooperation amongst yourselves um you all share information um if there's an issue we share you share that if there's an issue about you know a bug you share how to take care of you you share all these things and because of that we really

[02:05:42] have become well we are dc's wine country and our wine industry is just it it is just booming and i i always joke that when i became chair in 2016 the supervisor from sure you know what i should have the supervisor from charlottesville talked about their wine their wine and now i see her and And I'm like, excuse me, what do you want to say about your wine?

[02:06:06] Because we have surpassed all of the wine in Virginia. You all have done a phenomenal job. You really have. You have. Who would like to speak while we pass these out? Let me say a few things. Pass them out. So, first of all, thank you, Supervisors Crony and Chair Randall for co-sponsoring this with me.

[02:06:28] And thank you for all those who are here and those who could not make it. I know that this is a lot of hard work. and I'm sorry I could not make the awards this year. I have always made them in the past. I was out of town for a wedding, so I had a really good excuse, but hopefully I don't have that excuse next year, and I'll be able to attend.

[02:06:44] Just a couple of highlights I wrote down here that I thought would be. There were 168 wines entered from 35 different Loudoun wineries, which is impressive. I want to thank also the support of Visit Loudoun, and I think I see Buddy over there from the Department of Economic Development.

[02:07:03] Thank you, buddy, for all your support that you have done throughout the years, including this year. There are a few major milestones. This is the 10th year of the competition. And this is the first year, as I understand it, that every single wine that was entered was 100% Loudon grapes.

[02:07:19] Is that correct? That's pretty impressive. That says a lot. A couple of things to be emphasized. We now have 50 wineries in the county. These are all farms first. We have over 1,000 acres under Vine, and this is obviously a very critical part of preserving Western Loudoun, so thank you for all of you that do that, and thank you for those who are supporting it.

[02:07:46] Also, these are small rural businesses that keep Loudoun's economy moving forward. You generate over 50 million average a year, and you bring in about a million visitors to Loudoun County, so I do appreciate that. Thank you for all your work, and this is now our 40th year as an industry.

[02:08:02] When I say we, I kind of include myself because I get to support you. But you guys are really the ones that put in the hard work that have done so much of this. And many of you, more gray hair than probably when you started, have been around a long time. Thanks for all you do.

[02:08:19] So I just want to thank Amy Hinkle. I don't know if she's here today. Is she? No. She did the emceeing. So I went. I attended the awards. I had the pleasure of attending it with my husband. This is actually a rare event that my husband comes with me to an outing, and he actually really enjoyed himself.

[02:08:37] So I want to put a shout-out to Amy and Todd. We sat at their table, and my husband loved the Chardonnay from Lost Creek Winery. Congratulations to all the winners. You know, I know Loudoun's wineries are very special to tourism and to all of our residents in Loudoun County.

[02:08:59] They really enjoy visiting the wineries, and I thank you for all your hard work. And everybody's a winner, really. I enjoyed tasting all the wines. They were all fabulous. So thank you so much. And I think maybe we should introduce everybody.

[02:09:15] Yeah, why don't you introduce yourself? You won. You actually won. Right? I remember. Congratulations. Thank you. Hi, I'm Casey Luther. I'm with Two Twisted Post Winery, and I was awarded the Loudoun Wine Ambassador Award. Fernando and Jan Matho from Ironwood Winery.

[02:09:39] Thanks for having us. I'll let us speak because you're shy. Nancy Deliso from 868 Estate Vineyards. Hey, good evening. Becky Thacker from Carriage House Wine Works. On behalf of Mike and Jerry Fritzi, we say thank you. Thank you.

[02:09:57] Bill Hatch, Zephaniah Farm Vineyard, and a word about collaboration. You mentioned it. Thank you, Chair. Bob Ruppie from October 1 Vineyard. Jennifer Brough with Brough Vineyards. Thank you all.

[02:13:11] We're doing the public comments. Okay, we're going to go into public comments, and as is now the practice, I'm going to call people who first have items that are on the agenda tonight.

[02:13:30] We have plenty of time for everybody. Don't worry about that. But I'm going to call people first who we have agenda items tonight. And so my first speaker tonight will be, is Robbie here? Have I seen Ravi? Oh, there he is. Ravi Ballam, you are first, sir, and you will be followed by Rosemarie Linder, excuse me, and you will be followed by Christine, excuse me for choking on us.

[02:13:59] Ravi, how are you? Good to see you, sir. Great to see you, ma'am. Ready when you are. Thank you, ma'am. Madam Chair, Board of Supervisors, Ravi Balaram. I'm an active duty military pilot and FAA

commercial pilot and an active member of your design group that you charged.

[02:14:21] We in the Brambleton community, I'm speaking on behalf of them, are 7,000 homes and 28,000 residents of Brambleton. We strongly support all of the recommendations that the design group came up with. Now, as you know, we spent \$200,000 of taxpayer dollars to make this happen, which we're deeply appreciative for the Board of Supervisors for making that happen.

[02:14:45] As part of that, the FAA has charged us with coming up with consensus, which is exactly what we did. We had the neighborhoods and communities in the area of impact, in the area of influence, in the area of interest of this project that came up with consensus.

[02:15:02] We fully support all three recommendations, and especially the noise abatement departure procedure one. We understand this is a technical thing, and that's why we worked with V&Aire and Aloft to distill this and to make it understandable for the communities to come up with these solutions.

[02:15:21] And here's the bottom line. It's three things. One, this improves safety. Two, it improves efficiency. It is in the best interest of the airport, of the air traffic controllers, of specifically the airlines, and overall represents the consensus of the communities.

[02:15:43] These are minor tweaks. We're not looking at major overhauls here. I have fellow pilots that live in Brambleton that work for United and American Airlines. They fly NADP-1 procedures all the time. These are regularly done in Europe and in the United States, at Chicago O'Hare, and in LaGuardia.

[02:16:02] So looking forward to the support of the full board to move this forward to the regional project group. Thank you. Thank you. Who did I say was next? I said it was Rosemarie Linder. Is she here? She is here?

[02:16:20] She's still here? And while you're out there, Robbie, is Christine out there? She's right there. Okay, how about you come on up right now, and we'll do that while he's looking for Rosemarie. Marie. How are you? Very well, thank you. My name is Christine Lozier. I live in Birchwood at Brambleton.

[02:16:42] The last time I spoke with you was when you were struggling with the AIOD issue, which was very important to our community. I thank you for considering our situation in Birchwood at that time. Thank you for coming to a collaborative solution back then. I hope that tonight you will Once again, consider the effects of the flights from Dulles Airport on all Loudoun County residents and vote to approve the study before you.

[02:17:09] Thank you in advance. - Thank you very much, appreciate that. And Rose Marie Linder, did she come in? There you are. - Thank you, Madam Chair. Thank you to the members of the board.

[02:17:24] I'm here on behalf of the Birchwood Community Association at Brambleton at the approval of the Board of Directors to express our support for the recommendations in the design runway 30 design project and we appreciate your support thank you for all your efforts on behalf of all of Loudoun County really to look at this in a serious way and thank you thank you Mr Hemstreet is are the is staff in the room to do this project after public comments we can maybe just knock this one out right now they're in the room to do that okay we'll do we'll do that as soon as we finish with they're not a room but I'll make sure they're here okay

[02:18:00] All right, we can just get that one while people are still here, we can knock that one out. I'm going to go to John Myers, who is here to speak on an item that is on our agenda tonight. It's a closed

session item, but it's on our agenda, and I did see him. Good evening, Mr. Myers.

[02:18:16] Mr. Myers, I want to congratulate you and Birdie. You were recently included in the information provided by Hero Dogs. We saw that. It was people from all around, and I could not have been more pleased to see you and Bertie in that.

[02:18:33] Bertie especially, but both of you. Of course. Ready when you are. Good evening, Chair Randall and Board of Supervisors. Normally when I stand before you, it's more of a suit, and I have a speech that I've read over dozens of times.

[02:18:49] Not tonight. I'm just going to speak it from what's inside me. Last time I was here, it was to talk about the passing of Captain Wilson, who died of occupational cancer, serving loud citizens. And tonight in closed session, you will review a document and a proposal that was brought forward that not, I don't want to use the word can, but will save firefighter lives.

[02:19:10] Since Danny's passing, we've already had three more firefighters diagnosed with cancer since August 31st that went out and had their own testing done and then found that all three have different types of cancer. You know, months ago, this board approved the addition of GLP-1, two of the county insurance to the point of \$1.7 million and 12% increase to all of our paychecks.

[02:19:36] Now, I'm not belittling that. It's a great thing. What it serves is not caused by the occupation of the county employees. Being an employee of Loudoun County does not cause, is not an effect of what it cures. But the International Agency on Research of Cancer has listed that cancer is a class one carcinogen, the equivalent of arsenic, of gasoline, of cigarette smoke.

[02:20:03] our job is known to cause cancer our job is known that it can kill us my hope is some days that county staff brings forward something that will support something that actually causes the diseases that are killing my firefighters they put the work forward to say hey what are we offering our county employees our firefighters because right now it's nothing we get a county physical and as long as you pass it then great doesn't check for cancer at all the number one killer of us and so you know My hope is that you're able to look at the proposal that we have put before you, and it's a small amount compared to that GLP-1 or anything else in this budget.

[02:20:43] It's even less than a rounding error. And this company and this procedure has saved thousands of lives throughout the nation. And my hope is that you guys will see the net worth of it, and it's something that we can continue forward and someday won't have to be charged to a bargaining contract.

[02:21:00] It's just a benefit that the county is willing to give those that serve and keep its citizens safe. Thank you. Thank you, Mr. Myers, and thank you for your service to our county. I will go back up to other people on the list now. I will start with Andrew Wright, followed by Shane Crow.

[02:21:18] Good evening, Mr. Wright. Hi. Good evening. Chairman Randall, Supervisor Kirchner, Board of Supervisors.

[02:21:37] Good afternoon. My name is Andrew Wright. I'm a fourth-generation farmer in Loudoun, and I stand before you because your unanimous vote to abandon the right-of-way swiftwater lane at Raspberry Falls has put my family's safety and my property rights in grave jeopardy.

[02:21:55] I am landlocked. My only access egress is a low-water creek crossing designed to let floodwater pass safely over. In a high-water emergency, neither I nor first responders can get in or out of the 400-plus-

acre property. Your decision strands me.

[02:22:11] The entire purpose of that right-of-way was for safe access and egress. I want it back, now, without delay, for my safety and welfare. Without thorough examination, you, the board, abandoned it under the banner of safety while ignoring the real consequences.

[02:22:27] Proof the abandonment had nothing to do with safety because you never examined the cause and effect of your actions. That's not as responsible as I imagine you should be. Raspberry Falls is a beautiful, affluent community endless golf and hiking trails, cul-de-sacs, streets with long driveways and three-car garages.

[02:22:46] It's an upper-class community with plenty of room for kids to run, but a handful of parents whose kids apparently playing in the streets drive your decision to abandon the right-of-way. The board decision was made prior to my public testimony. You heard from one side, for fear of change, a development.

[02:23:02] You never heard my point of view. Mr. Kirscher never reached out to me. you never considered safety or welfare of the 400-acre property of the right-of-way the right-of-way connects to its residents, future residents, or emergency vehicles that could be blocked. The best solution. Granted, the developer wanted an open road, but to Raspberry's concern, we suggest a simple fair compromise. Emergency access egress only. No extra traffic for Raspberry Falls, but in a crisis, firetrucks, ambulances help reach out to both of us faster. Ironically, raspberry falls representative mr wright's presentation perfectly proved the necessity

[02:23:41] of an emergency access egress watch it the abandonment was arbitrary driven by one-sided testimony and the county had questionable application delays leading up to the abandonment it's an abuse of discretion please review the full record reinstate the right of way as emergency atlas only no lawsuits no risks raspberry falls keeps its peace the project is approved a proper flood plain crossing will then be funded and built over limestone branch safety is realized everyone wins most importantly consider my safety don't make my family trapped when seconds matter

[02:24:19] thank you sir thank you thank you um shane crow followed by scott um brainard good evening good Good evening. As always, my name is Shane Crow. I guess Loudoun County's friendly nuisance, always advocating for the use of ranked choice voting for our local elections.

[02:24:40] I'd like to start my commentary today by thanking Supervisor Briskman for a conversation Wednesday last week to talk about ranked choice voting, among other topics. There were a couple of things that were raised during that conversation that I wanted to be able to address on behalf of the entire board.

[02:24:57] There was a concern about the nature of how ranked choice voting seems to be rolling out here in Virginia, how it seems to be that localities are being used by the state as guinea pigs instead of the state legislators taking this on first.

[02:25:14] And I definitely understand there's some friction between local and state lawmakers in many aspects. I do want to provide some broader perspective as to why I think it would be important for our locality such as Loudoun to take the first steps in making this simple change.

[02:25:31] Because what we're trying to address is partisanship and hyper-partisanship, which are essentially partisanship itself being an infectious disease which obstructs a deliberative body's ability to govern. And when it reaches a level of hyper-partisanship, we are now trying to tackle a cancer.

[02:25:49] And I believe that all tools are necessary in order to make sure that we can help keep this American experiment going so that it does not end up dying. And so I know, like, through my work with Upvo Virginia, they and I will be advocating for legislation come next year that will expand the scope of the local option to include all local offices, including towns, so that localities will have even more liberty to make this choice.

[02:26:14] And even though it may become a patchwork at first where some localities will opt in, it's kind of like on another topic we were talking about with the development of bike lanes in the community where it starts off with one street or another. Over time, it will become a comprehensive network so that all elections may soon eventually be covered.

[02:26:33] But again, little steps here and there, I think, can go a long way and to help keep the state and nature of our politics, like, avoiding a greater state of morbidity. So, again, I thank you all for your time, and I hope you have a wonderful evening. Thank you, Mr. Crowe. I appreciate you.

[02:26:51] Scott Brainerd, followed by Robert Griffin. Scott Brainerd, is he on the phone? Hi. There he is. Yes. Hi. We're ready for you, sir. Great. My name is Scott Brainerd. I have a cold. Sorry for speaking remotely.

[02:27:08] I live in Lovettsville, and my comments are about a subdivision that's being built by Lennar outside Lovettsville. It's called the Shuney Project, and I emailed all of you some details earlier today. But basically, Lennar began building their subdivision without first securing legal access to their site, and this has resulted in a string of problems.

[02:27:28] First, they started building their subdivision a few months ago using an old farm gate entrance next to St. James Cemetery on Lovettsville Road. This violated their erosion sediment control plans, their stormwater management plans, the cemetery protection buffer, and following residents' complaints, planning and zoning shut the entrance down.

[02:27:47] Next, they started using an entrance that they're in the process of building on Lovettsville Road, but it doesn't currently meet VDOT standards because it's next to a 90-degree blind curve in Lovettsville Road. And you can't see around it because there's a large forested wetland on the inside of this curve that blocks any line of sight.

[02:28:06] And Lennar hasn't bothered to get the environmental permits to clear this line of sight. So the entrance now currently violates VDOT safety standards. Residents complained. VDOT quickly suspended their permit coverage for the entrance. And VDOT noticed what was happening, this pattern, and they requested that building and development issue a stop work order.

[02:28:24] Building and development declined to do so. And so, predictably, Lennar found a new way of illegally accessing their site by driving across a neighbor's parcel, despite no trespassing signs that were posted prominently. The neighbor requested Lennar stop, they refused to do so, and he's now pursuing legal action.

[02:28:41] But in the meantime, they've also continued to use the temporary entrance on Lubbertsville Road for large truck deliveries, despite VDOT's instructions not to do so. So it's pretty clear that Lennar has no interest in stopping construction, even for a brief moment, to secure legal access, because it would cost them money.

[02:28:58] And to say that building development hasn't done anything is honestly an understatement. They allowed this project to begin despite being informed over a year ago that Lennar had not even applied for the environmental permits needed to clear this line of sight so they could access their site safely.

[02:29:15] Weeks have gone by now. Building development is just standing by, and this is urgent. Many of my neighbors in the last couple of weeks have nearly crashed into Lennar's tractor trailers that are illegally turning onto their property because there is no line of sight. This can't wait months for resolution, and so I really hope that the board can work with Building and Development and VDOT to keep all of us in Lubbertsville safe.

[02:29:38] Thank you very much for your time. Mr. Brainerd, one quick thing. First of all, thank you very much for that information. Secondly, are you speaking on behalf of Saverall Loudon? Are you speaking as an independent resident right now? I'm speaking on behalf.

[02:29:56] I mean, these are all concerns that Saverall Loudon has also voiced to VDOT and to Building and Development. And I am speaking, I guess, as somebody who lives in the community and as a board member of Saverall Loudon.

[02:30:13] Okay. All right. Thank you. Thank you very much. And then our last speaker today is Robert Griffin. Mr. Griffin, are you here? Going once, going twice? Mr. Griffin does not seem to be here.

[02:30:30] All right, supervisors, let's go on, and Mr. Turner, we're going to go on, and Mr. Turner, we're going to go on and everybody do the airport noise mitigation issue. It's number 2C.

[02:30:45] I thought I would do it since we have people in the room who just spoke on the issue, and we can kind of knock it out and do it before we go to our first closed session. Mr. Turner, will you take this? Chair Turner, we will start in just a moment.

[02:31:20] We need... All were eyes. Yeah, Mr. Peters, what were you saying? I am just about to pull up the slideshow.

[02:31:38] It's coming up. I think we had to restart the WebEx, so we are pulling up the PowerPoint right now. Okay, so good evening. As you are well aware, I'm Josh Peters.

[02:31:54] I'm the project manager for this effort, and co-project manager is Dusty Smith with Public Affairs and Communications. Also, DPZ Director Dan Galindo is here at the table. And, of course, we have our consultant help. Jim Allardyce with Fine Air is on WebEx to help us do presentations and with the Q&A.

[02:32:14] So I'm going to give Jim just a little bit of introduction before he jumps in and presents these recommendations. The background for tonight's item, it started back in January of 2023 When the board adopted updates to the airport impact overlay district, the board also directed staff to engage with the Federal Aviation Administration to look for potential remedies to the many noise concerns that we have from residents around Dulles Airport.

[02:32:48] Since that time, about three years ago, staff began trying to make inroads with the FAA, had some trouble, brought on the help of Vionair, and with Vionair's help, we did make contact with the FAA. The FAA told us, the county, that if you're going to make some sort of request or proposal having to do with flight paths in the FAA's jurisdiction, we would need to put together a public process.

[02:33:16] And so the Eastern Region Administrator did have conversations with Vionaire, letting them know the broad outlines of those requirements. Vionaire then worked with staff to help us design a public process.

[02:33:31] We brought that public process to the board for endorsement in May of 2024. The board endorsed it. And since that time, we've been implementing that public process. It included putting together a design group. which comprises residents of Loudoun County who live within the study area.

[02:33:52] And that design group has worked with Vionair to put together a small packet of recommendations. And Jim Allardyce will be presenting those recommendations in just a moment. It's important to recognize that the recommendations are actually from the community.

[02:34:10] They're not actually staff's recommendations. staff's recommendation on the item is to endorse the design group's recommendations as they're presented. So that means all three. And I understand that there is an alternative motion distributed right now that would give option to separate those different recommendations.

[02:34:31] And I just want to speak to that for a second because the staff recommendation, which you'll see, is to endorse all three together. The reason for that is because we believe it's most consistent with the direction we got from the eastern region administrator run the public process and then forward the recommendations that result from it so with that being the background i will hand it over to jim allardyce to present the recommendations mr allardyce can you hear me yes sir you are you have the floor thank you sir good evening everybody um wow we've come a long way since

[02:35:08] the beginning josh ran through everything and uh we're just turning the final corner down the straightaway and trying to get this thing done. So Josh, I guess you can just go to the next slide since this tells us what the process has been. And since the public kickoff meeting, we formed a design group. We formed a regional project group. We took the design group through the whole entire process to fruition, which resulted in three recommendations. And here we are at the Board

[02:35:44] of supervisors meeting would love to get unanimous consent for these at the end of the night we'll see but the next step will be the regional project group and so what happens at the regional project group is all of the the recommendations that are approved here tonight move forward to the regional project group they consider whether or not these recommendations affect anyone negatively outside of the area of influence. So if they determine that there's no

[02:36:23] significant impact to people outside the area of influence, then they will give the project their blessing, and from there it goes forward to the FAA. So as you know, this is the slide I live on because it's the most important part of the project. This is what makes our process unique from other processes. There are FAA implemented or designed and implemented procedures, and they

[02:37:02] have a process that they go through that affords communities very little input, if any at all. There are third-party procedure providers that sometimes do a little bit better in involving the community but not always in this process that we do we put the community right up front when we come into a

project like this the first thing that we ask for is community representatives to come together and we brief them and tell them that ultimately what comes out of this process will

[02:37:42] be their product. And what Vionair does is simply facilitate the process and give them course correction when needed to stay within the guidelines of criteria for designing flight procedures and also within operational criteria, operational requirements for air traffic control and airlines, just to make sure that anything that we're recommending is actually an implementable recommendation. You know, you can go to some places and the recommendations come out,

[02:38:20] shut down the airport. Well, that's not implementable. So what we try to do is try to stay within what can be implemented. To get to that point, we do what is called a design philosophy. The design philosophy is not only a guide up front about how we're going to conduct business, but it's also the measuring stick that we use at the end of the project to define whether we have been successful or not.

[02:38:51] As you know, in any noise project, there's going to be airplanes over somebody's house. So whether or not an aircraft is over somebody's house cannot be the deciding factor on whether the process has been successful.

[02:39:09] When you're looking at a regional project in scope, which this is, it's a small region, it's just west of the airport only, but still, it's a regional approach. you have to take into consideration all of the residents and what is the best possible solution for the entire region. That's what this design philosophy is intended to do. I believe that's what it did. So going through the design philosophy, the first one is increase safety by reducing overflights of densely populated residential areas. The conversation within the

[02:39:44] design group had to do a lot with residents on the ground. What happens if you have a Louisville accident? Where do you want those airplanes to come down? Well, you don't want them to come down anywhere, but it's much better if they come down in a less densely populated area. The flight procedures that we have designed ensure that aircraft stay over industrial, commercial areas as much as possible and stay away from residential areas. Secondly, we try to

[02:40:24] increase efficiency where we can or at least maintain it. These procedures do that. They continue to give the airlines divergence and the FAA divergence off the airport, which means when the airplanes get airborne, they turn away from each other relatively soon. The other thing that it does is it provides for what we call RNAV off-the-ground procedures. What RNAV off-the-ground is, is a procedure that allows the airlines to implement or turn on guidance for the aircraft

[02:41:01] while they're on the ground, rather than waiting for a vector to be issued when the aircraft get in the air. So today, a lot of the airplanes take off, and they're given a heading once they take off that they're to turn to. And eventually down the line, the air traffic controllers put them back on the flight procedure. Mr. Allardyce, let me just hold up. Just give me one second.

[02:41:25] Are we still on page three? We are on where it says project design philosophy. Yeah, we're still there. Okay. Yes. Okay. Yes. All right. We're gonna, we're gonna, we're gonna talk a little faster, sir. Okay. Thank you. So, well, anyway, so the increase of efficiency comes also in the fact that pilots can enter these procedures in their computers while they're on the ground and then follow that guidance. Track, decreased track variability close to the airport. One of the major

[02:42:02] complaints was that the aircraft get airborne and turn quickly. This puts the aircraft on a predictable, repeatable track, and it keeps the aircraft over less densely populated areas. And to avoid

disproportionate impact to any single entity, as you go through the presentation, you'll see that each entity, each neighborhood around the place enjoys some improvements, And on certain occasions, maybe some disimprovements.

[02:42:38] But overall, there is improvement to the noise around the entire area. And lastly, minimize overflights of noise-sensitive areas such as schools, hospitals, and churches to the maximum extent possible. Next slide, please.

[02:42:56] All right. So the key recommendations are NADP1, which we've talked to at length, use of nighttime noise track. Basically what that is, is when an aircraft takes off, they'll fly runway heading until they leave 3,000 feet before they turn.

[02:43:14] That gets them further away from the airport and higher before they turn at night. And the last one is the actual RNAV procedures that we're recommending. Next slide, please. So this is NADP-1. As Ravi said, this is not an uncommon procedure.

[02:43:34] What it attempts to do is get the airplanes higher, faster, and it is designed to reduce noise close into the airport. We've done the studies. We've shown that it does reduce noise in close to the airport. There is a question asked about how much higher will the airplanes be.

[02:43:52] We're talking hundreds of feet, not thousands of feet, but they will be higher than on their current flight paths. Next, nighttime noise track. This has been employed at a lot of different airports.

[02:44:08] Atlanta uses a nighttime noise track. Fort Lauderdale uses a nighttime noise track. There's several other airports that do. What it amounts to is the aircraft being assigned a runway heading on departure.

[02:44:24] That's the recommendation here anyway. And the aircraft would go to 3,000 feet before they turn on course. It's also asked, how do we come up with 3,000 feet? The existing flight procedures at the airport have what they call a top altitude of 3,000 feet.

[02:44:43] So we couldn't really assign an altitude where the airplanes would turn that would be higher than that because there's no guarantee that they'll get higher than that immediately, although they usually most often do. But what happens would be the air traffic controller on departure would say radar contact, climb and maintain whatever altitude, 10,000 feet, leaving 3,000 feet, turn.

[02:45:08] And that would keep the airplanes going straight out until they hit 3,000 and then they turn. It also tends to get the airplanes to climb higher faster because they want to be on course. So they tend to get up to 3,000 feet as quickly as they can.

[02:45:25] So usually they achieve that within five to seven miles of the departure end of the runway. This procedure would be applicable between 11 p.m. at night to 7 a.m. in the morning so long as traffic permits. And what that means is if for some reason there's thunderstorms in the area and the flights have been delayed and there's a backlog, they probably wouldn't go to this procedure until they alleviate the backlog, but then they would go to this procedure as soon as practical. Next, the consolidated flight paths. This is where we took the existing flight paths

[02:46:04] and took a look at how we could consolidate them into paths that stayed over commercial industrial areas as much as practical. Next slide. These were the communities that were involved in this process.

[02:46:24] This is the area of influence. When we originally started the project before the design team, we took a look at what we thought was going to be the area within which all the changes would take place. For the most part, that's true. That's what happened. The changes took place within this area. And you can go to the next slide and you'll see where they slightly went outside on the sides.

[02:46:50] The one thing I really want you to take a look at here, and it may be hard for you to see on the screen, but these white or gray tracks, you can see that many of them turn very quickly off the end of the runway to the north and to the south. These tracks are what causes noise over the most densely populated areas. If you follow the red tracks, the other thing that you will see is that the red tracks tend to stay within the densely populated track or the track density

[02:47:27] areas that are already in effect. So even though they're turning, they're going where airplanes already go. So nobody's going to experience, quote unquote, new noise. Airplanes already fly where we put the airplanes. But what we did is that one track that goes straight out during the daytime, that those airplanes won't be there. They'll be up on the red track on the north or down on the red track on the south. They won't be straight out there during the day. So that'll give them relief. The folks north of the airport and the folks south of the airport, they won't be getting

[02:48:03] overflights if this recommendation is adopted. So we really feel like this serves the most people the best way we could possibly come up with it while keeping the aircraft over commercial industrial areas as much as possible. Next slide. So I did say this before, generally speaking, the aviation industry likes RNAV off-the-ground flight for the reasons explained,

[02:48:36] and we had several informal discussions with industry. I know there's been some discussion with United Airlines by various people. We've talked to them. I think some of you have talked to them. The difference of opinions that I guess we get, some people say we have concerns with this.

[02:48:56] Some people say we don't hate it. The bottom line is you will not get a United Airlines position on this unless the recommendation is made. And we believe the recommendation should be made because it is the best possible alternative, in my opinion, and in the design team's opinion, to what you have today. So ultimately, your choices are status quo or the recommendations we've put before you. When United Airlines gets a hold of this, they will determine whether or not

[02:49:32] NADP1 is a problem. They will determine whether or not the flight tracks are a problem. They'll give you an official position, but they won't do it unless we make the recommendation. And in the absence of that, all you have is various and sundry people's opinions.

[02:49:51] You don't have United Airlines position on this. All right, next. So in conclusion, I think, again, that these are the best possible recommendations that the team could have come up with giving existing rules and existing technology.

[02:50:13] we we have the three recommendations I would hope that you would consider approving them together I think they go hand-in-hand very well and I will take any questions you may have thank you so much for that we appreciate it we appreciate the the presentation also at TLUC and stay on and we'll see if we have any questions I just just an FYI I do have a request to separate the motion. It doesn't mean that nothing's going to pass, but there is a request to separate the motion. I have never not granted a request to separate the motion.

[02:50:53] I will vote how I vote on all of them, but I'm not going to do anything different than I've always done and I've always granted that request before. So I'm going to grant that request right now as well. It is Mr. Sainz's request, but Mr. Turner will make the motions. But let's first go to two questions. And so, Ms. Bricksman. Thank you. So, why did the airport and the FAA create the flight paths that are existing right now? Like, why is it all spread out right now? What's the

[02:51:29] reasoning behind that? So, unfortunately, during this process, we had very little face-to-face time with the FAA um yeah but you're an expert you're an expert in flight and you're part of the design group right so yes why do they in general do it that way so I was yeah I was getting ready to say okay so it dates back to um the Metroplex projects when they when they implemented the Metroplex projects if you actually look at the flight procedure designs um they do have some

[02:52:07] designs that are RNAV off the ground now, although they do not use them that way. They've continued to vector the airplanes for convenience, I guess, but this also gives them an alternative that actually makes it easier for the pilots and it makes it easier for the controllers, in my opinion.

[02:52:29] So you're saying that we have this spidery looking map or graphic because they did it for convenience that yes absolutely okay okay so let me ask you this okay okay so i guess it seems to me though that with the former way versus the way that's the the design committee is recommending sort of spreads the pain it seems to me that if we force all the planes to go the same way in the middle of the night then whatever houses are there are getting plane after plane after plane

[02:53:08] after plane that they're getting the brunt of the noise in the very same place every every single time so how is that fair so well as i said i think each community has a benefit each community has a disbenefit so the ones that are straight out on runway heading the the the kind of thick white path that is out there straight out on runway heading yeah they that that will not be there during the day. During the night, it will be there, but the aircraft will turn randomly when they reach

[02:53:46] 3,000 feet. So it will be dispersion, and it will be dispersion based on the climb rate of the aircraft, of which all are different. Okay. Sorry, I only have 20 seconds left. Sorry. One more question. So have we ever done any analysis about what's happening at runway one and two with the noise. That was outside of scope of this project. Okay all right because it seems to me that we could have other communities wanting the same thing. I mean I knocked doors recently in one loud and it was very very loud but okay thank you. Thank you Mr. Letourneau. Okay thanks let me

[02:54:23] get to my kind of my most important question first. If you go to our item I don't know if staff has this this graphic that shows the actual communities. It looks like we're consolidating traffic over where it says briarfield estates old arcola residential there's actually two additional communities there west windsbury and south fork they're small they're not brambleton so they weren't part of the design group but why wouldn't those communities now be getting a significantly

[02:54:53] higher percentage of traffic so yes um because the all of the tracks that are spread out to the south would be consolidated on that red track and one of the other things was why did we put it there it has it has to do with criteria they have to turn within two miles of the runway and that turn point is 1.9 that was the best turn point to keep it over commercial industrial areas and non-residential areas as much as possible yeah i mean unfortunately so one of those communities hasn't been built yet that's the capretti project that we approved but we're putting 200 houses there

[02:55:32] So, as the supervisor who represents those constituents, I don't know how I could possibly in good conscience, especially because I think most of them don't know. These are smaller communities, they weren't part of the design group. I would, at the minimum, want some time to actually get them acclimated with the process.

[02:55:50] We did reach out, but these are, like I said, these are smaller communities, they don't have on-site managers, it's kind of hard to get anywhere quickly with this. On the NADP-1 departure, isn't there higher noise associated with increased thrust going higher?

[02:56:08] And also, what are the impacts on fuel burns and emissions from the steeper departure? So the NADP-1 departure is specifically designed to reduce noise in close to the airport. So NADP-1 will reduce the noise within the first several miles of the climb-out.

[02:56:31] As far as fuel burn and emissions, it's negligible. We did some preliminary data, and at the current fuel rates, it was about \$59 per flight. So, again, that's something I don't think we really need to worry about, because United Airlines is going to be able to stand up for themselves and say whether it's an impact to them or not.

[02:56:59] I will say they're doing it at several other airports. understand that point but if they're burning more fuel there are other impacts to that besides just just cost um i know i know that departure procedure does exist at other airports i'm just in in in theory the higher you go the less noise profile you have lower but if you've ever been on one of these planes on one of these which i'm sure you have like a you know john wayne county or something it's pretty loud also so i just was curious on that i am out of time thank you we're going to have lots of discussions and all four separate motions so we can do we have lots of time

[02:57:35] mr sanes thank you madam chair yeah i kind of can continue on the noise abatement departure procedure one so in my understanding they would have to get more fuel because they're going to have to burn more fuel for the the faster takeoff and the higher you know i guess throttle back or whatever. In your opinion, or do we even know, would that entail higher costs for airline tickets for the customers who are going to be flying out of Dulles if this was implemented?

[02:58:06] Yeah, I mean, that's definitely something you'd have to ask United. But like I said, I don't think they would actually know unless they did a study. And they won't do the study unless we make the recommendation. And the purpose of the project is noise. And so we did not consider fuel burn or emissions in the process. We considered noise. Okay, and you mentioned that there's other airports that use this procedure now. Can you provide us that list? Well, I think Ravi did earlier. He said LaGuardia does it. I know John Wayne does it. We have a recommendation

[02:58:43] that we submitted for south of airport over DCA for them to switch over to NADP1, which was accepted and sent forward to the FAA. There's several airports in the United States that do it and there's a whole bunch in Europe. I want to have a few more questions. Thank you. We'll definitely review that list of airports that do this. Okay, in the third recommendation, the modified runway transitions for all runway 30. If we go back to, yes. Whoa, whoa, whoa, whoa.

[02:59:14] Oh, you're just asking questions on everything right now? Yes. Okay. All right. Okay. Is that Okay. Yep. That's fine. I'm sorry. Yeah. Thank you. So if I'm reading this right, this map right now, all the white lines, that means airplanes go all those different directions, correct? Yes. Okay. And then what this proposing is those red lines. So you have the four tracks, the top right, then you have a track to the bottom

left there. So let's just say if there is 10 planes flying right now, all the 10 planes are going different directions in the white lines. But with this, what we're proposing, what you're proposing is saying all those 10 planes,

[02:59:49] let's say in the top right are going to go those four different uh pathways every single night correct or all day long is that correct so the reason that we took these two tracks was there is equal amount of airplanes that go to the north as go to the south okay but that's not my question sir sir sir yes or no the 10 planes will now just fly on those four tracks on those red tracks correct instead of being spread out and that's and that's an approximation okay so let me ask this question so it's not perfect so in theory it sounds like we're removing noise issue from one

[03:00:26] area possibly and then if i'm in that northern part now where it's spread out now i'm going to receive all the noise on those tracks all the time if i'm in that area would that be accurate to say at a reduced volume because the airplanes are so much higher at that point I have a matter of time, but thank you.

[03:00:51] Ms. Umstead. Thank you. Thank you, Madam Chair. I notice in the report we got that EMWA and the FAA appear to be brought in after the board adopts or does not adopt this.

[03:01:16] But based on the staff report, it looks like you had trouble connecting with the FAA. And EMWA was never included in these discussions at all. Is that accurate? EMWA has chosen to remain neutral on this, and the FAA has given us the process which we're following so that we can submit these recommendations.

[03:01:43] The difference between this and the DCA project is the person that was the point of contact moved on to another job, and the FAA did not replace that person. So we did not have a point of contact in Potomac TRACON throughout this project.

[03:02:03] Okay, and to follow up on, I think it was Supervisor Letourneau, maybe Supervisor Sainz's questions. So it appears if you've got these airplanes going faster, increasing their elevation more quickly, you're burning more fuel, but you're also producing more pollution.

[03:02:31] And so my understanding, since you were only looking at noise, you're not looking at the environmental impacts of this proposal. Is that right? We primarily focused on noise.

[03:02:47] And as we said, just a cursory look, it is negligible, the difference in fuel burn and emissions between NADP-2 and NADP-1. An environmental study will be conducted by the FAA before any of this is implemented.

[03:03:04] Okay, thank you. Mr. Crony? Thank you, Chair Randall. So I hear you say that, you know, you improve noise, but I also understand it improves safety and efficiency with the three recommendations. Am I correct in saying that, Mr. Allard?

[03:03:21] Yes, ma'am. Okay. And that's, how does it improve safety? So, as I said, the design group, one of their main concerns was where the airplanes flew should not be over residential areas to the maximum extent possible, and that's what we did.

[03:03:39] It also standardizes the departure with the RNAV off the ground, where they can put the information in the computer prior to departure. Okay. And then efficiency is, and that's with all three of the recommendations, right?

[03:03:54] it improves efficiency yeah the efficiency is maintained by having the divergence where the red tracks come apart that allows the aircraft to be launched successively at at close interval which they do today um except for they spray them all over the sky and the design group wanted the aircraft pinned down to these industrial areas okay and i understand that that nobody will experience new noise. I heard you say that, and that it serves the most people the best way possible while keeping aircraft over industrial and commercial areas as much

[03:04:30] as possible. Is that correct? Yes, ma'am. Okay. And they will disperse once they're at 3,000 feet, right, at a higher altitude. That is the nighttime recommendation where they would continue out on runway heading until they leave 3,000 feet before turning. Yes, ma'am.

[03:04:52] Okay. All right. And so how many more planes will be flying over homes with recommendation number three? It sounds like it's the same amount as to what we have today, because there will be, nobody will experience new noise, correct? Correct. Well, it does not increase or decrease capacity. It allows them to maintain the capacity, but it takes aircraft from over people's homes to

[03:05:28] over industrial areas. Okay. Thank you very much. As much as possible. Thank you for that. Mr. Turner. Thank you, Madam Chair. This is going to be lightning rounds, guys, so hang on. Correct me if I'm wrong, NADP-1 is the predicate for Modification 2 and 3.

[03:05:48] Everybody is going to follow NADP-1, nighttime or RNAV off the ground, correct? Yes, sir. Okay. So all those white lines everybody's looking at, you're focused on a two-dimensional, where are they over the ground, when in fact the overall noise level of every flight taking off a runway 3-0 will be substantially lower following NADP-1.

[03:06:09] Can you explain to me why we're doing the straight-ahead departure at nighttime? Is it specifically for more efficient airport operations at night? So, actually, it doesn't increase efficiency at night.

[03:06:26] All it does is ensure that the aircraft are much higher before they turn over people's houses. okay and they're over they're over that i measured out it's a mile and a half over uh the the broad run and over the industrial area for the so if they can get to 3 000 feet before they're to mile and a half they're not over any houses when they hit 3 000 feet um just for point of information my daughter and i went to vacation to balboa island which is right the flight path for the departure off john wayne and my daughter without any prompting said dad how come i can see the airplane's taken off the runway and I can't hear anything until they're very high and then I hear

[03:07:05] them kick in their engines. That's because they were flying NADP1. It is a radical reduction in noise as the predicate for all the options two and option three. RNAV off the ground and the routes that they're suggesting have minimized the houses that they go over and again you have to decide okay we're dropping the number of houses we're annoying from 10,000 to 5,000. Well okay That might irritate 5,000 houses that are not being irritated right now.

[03:07:34] I question on this runway whether that's true. But, again, the underlying predicate is everybody's going to be higher, and the noise level is going to be much lower no matter what they do. So right now they're doing RNAV off the ground without any departure procedures. And I've seen airplanes, pictures of airplanes over Butchwood, well under 1,000 feet at full power in a bank turn.

[03:07:55] So, and then the last thing very quickly, and confirm for me with this, you guys, the beauty of this is that, A, it complies with the process the DFA wanted. B, it minimizes turbulence, pun intended, turbulence within the airport efficiency in the airport operating environment.

[03:08:16] C, it appreciates the efficiencies that the airlines want. And I know we've had conversations with the major airlines and said, yeah, this is not that big a deal. We can do this. And C, taken together, it is a major reduction in noise for the entire area of Runway 3-0.

[03:08:35] Regarding the question of the Runway 1 and 2, Runway 3-0 is a primary departure runway. That's all I have. Thank you. Thank you. So this is one of these moments where two things are going on. One, again, I noticed a committee split because T-Luck got this and we had a long time to sit with it and a long time to answer questions that are being asked right now.

[03:08:55] And I do hear some, I think, leading questions that are not really correct or actually correct. That's the first thing. The second thing is this is one of these moments where I just say, I don't know what I don't know, and I don't know anything about airline noise or NADP or I don't know any of this stuff.

[03:09:15] All I can know is that we hired an independent agency to look at these numbers and give us a report. I do know that NWA has said they're really not touching this yet until we pass something or go further.

[03:09:34] And FAA, the person wasn't there. And so I don't want anyone to think that NWA and FAA haven't been involved, but they basically said it's not time for us to be involved right now. And I don't know that some of these questions can be answered until we make recommendations.

[03:09:50] Let's not mix up making recommendations with it's going to happen. I think making the recommendations will actually give us a chance to get some of these answers. The answers about the environment, which I have heard are negligible. I don't know what negligible over the life of Dulles Airport means.

[03:10:09] Maybe that's a thing, maybe it's not. There's a lot of questions that I think are valid questions that I've heard that we're not going to know the answers to until we make the recommendations. NY may get involved, FAA may get involved, and we get some of these answers. I will also say that there have been people on this dais who have been deeply involved in this process, Ms. Letourneau in one way, Mr. Turner in another way, forever.

[03:10:37] And so there are times when I think there is nothing wrong with giving deference to our colleagues who know more and who've been involved more. And sometimes, I don't know, we always want to do that. But I can remember one of my very first votes on this day as I got voted down and it was for homes in this area, in one of these areas.

[03:10:59] And it was like, no, because it's over the flight path. And then the flight path got changed and now homes are coming and nothing changed but we changed zoning and they changed nothing else changed and so it's like well okay we could have built homes in this very place 10 years ago and so the only question I would have is if I got what you said correctly help me understand this when you say they rise fast they climb faster so there are much higher elevation can you tell me what the noise difference is at that much higher elevation

[03:11:38] To the naked ear, is there really a difference? Is there not really a difference? Ms. Letourner has told me before, it does make a big difference when they're higher. To the naked ear, is there a big difference? When we looked at it, initially it came out to be somewhere between 2 and 9 decibels reduction in noise for the NADP-1 climb, depending on where you were.

[03:12:04] Supervisor, if you don't mind, to the naked ear. I don't know what that means. So normally you can perceive a difference in sound if it is three decibels or greater. Ah, that's helpful. Okay. Okay.

[03:12:20] Well, we have four motions on the day. Mr. Turner, would you like to start making motions here, sir? Sure, ma'am. Supervisors, let's try to stick to the motion that we're talking about at that moment. I move the Board of Supervisors endorse a design group recommendation to implement noise abatement departure procedure 1 for all Washington Dulles International Airport Runway 30 departures as provided in attachment 1 to the November 18, 2025 business meeting action item.

[03:12:44] Motion is made second by Supervisor DeCrony. Discussion on the motion, Mr. Turner. Yeah, to start the discussion, I can't emphasize strongly enough how important it is for all three of these recommendations to be approved.

[03:12:59] This process is agonizingly slow, and the key to success is doing what the FAA expects you to do, the way you expect to do it, to maximize efficiency and minimize impact on Dulles Airport operations so that EMWA is comfortable with the changes, and then to do them in a comprehensive way such that it minimizes the number of houses that are flown over and minimizes for all flights, all the departures.

[03:13:28] that's only achieved if we if we pass all three of these measures um everybody faa my everybody's going to raise their eyebrows if we pass two but not three after a three-year professional study of what we should do so i can't emphasize strongly enough how much we should we should we should consider all of these all four of these together thank you mr saints thank you can somebody clarify the criteria from faa does it say state that we have to pass the certain criteria or three four five six or does it say these are the steps you have to have a working group have meetings have

[03:14:08] the local body endorse uh an item and then it'll come to us for for review and etc the faa doesn't speak to how you guys do this okay it just speaks to the entire process okay thank you so i just want to clarify that we technically do not have to vote for all three for the faa to do whatever they want to do. We can vote however we feel. So I just wanted to clarify that and get that on the record. Thank you. Mr. Crony. I want to associate myself with Super Vice Chair Turner. I think that we should be endorsing all three together. I think they go hand in

[03:14:43] hand together. And I support the design group recommendations in its totality as they reflect the consensus of the communities impacted. These are the recommendations from the community. It's a product of the community pulling out certain recommendations when they should be endorsed together, approved together.

[03:15:10] That doesn't make sense to me. This is an approach that is the best solution for all residents, and I think it serves the most people. It's the best possible way while keeping aircraft over industrial and commercial areas as much as possible.

[03:15:29] And so I do want to thank Bionair, Aloft, county staff, and the residents who participated in the design group. As Vice Chair Turner said, it was a very long process. And I appreciate everybody's input. And I am ready to support all three together because they do reflect the community's position.

[03:15:51] And then it's a product from the community in its totality. Thank you. Mr. Letourneau. Thank you. Okay, this motion is only on recommendation one, NADP, not all three, or all three together. So I'm going to just address that, which is I'm willing to give this a shot.

[03:16:09] I kind of think of the three, this may be the one that could have concerns from airline or airport operations standpoint because of fuel burn. But I do agree that that's not really our problem. As long as we're confident it actually will reduce noise.

[03:16:28] My only concern is at the very beginning of the acceleration to a higher altitude, there is increased thrust and increased noise, and you're not yet at altitude. And we're talking about pretty close proximity here. But I assume that there would be a technical analysis of this.

[03:16:47] I guess that's a question perhaps for Bioneer, before the FAA implemented, right? I mean, they would verify that, right? Absolutely. Okay. All right. So I'm comfortable giving this one a shot. Is it helpful or not to have all of them – do all three of the motions work in tandem better if we say yes to all three?

[03:17:18] I'm not saying anything's required or anything the FAA said anything, but overall, is it more or less or doesn't matter at all for the recommendations to go forward together? Is that for me?

[03:17:34] Yes, it is, sir. Yes, ma'am. I believe that the maximum benefit will only be achieved if all three of them are implemented. Okay. Okay. All right. Is that a closing? Yes, Madam Chair. Let me clarify my earlier comments.

[03:17:50] Supervisor Sane is correct. The FAA doesn't say you can't do two of the three. What the FAA says is we're not going to talk to you until you have community consensus. For three years, the staff has done a spectacular job and Vine Air has done a spectacular job of getting community consensus.

[03:18:10] And community consensus is for all three of these recommendations. National Airport, I believe, correct me if I'm wrong, staff has been doing this for eight years because they can't get community consensus. We have a stream valley right off the end of runway 30 that's very conveniently set up to us to come up with, I have to believe, is one of the best solutions for a major airport in the United States. It's conveniently located and lined up right with runway 30, which gives us a mile and a half of no houses and really underlines the old process. But again, to this motion and the other

[03:18:47] three motions is if the FAA here is community if the community consensus is all three of these recommendations and the local board says we're only going to do two of the three the FAA will seize upon that and say oh sorry that's not consensus we're not going to do anything that's the problem it's not what's mandated so again I really really urge everyone to accept all three of these recommendations okay but right now we're just doing one the motion was made by Supervisor Turner, seconded by Supervisor DeCrony.

[03:19:15] All in people who say aye. Any opposed? That motion will pass 9-0. Mr. Turner, so I can make a second motion. I move the Board of Supervisors to endorse a design group recommendation to implement a nighttime heading procedure as provided in attachment 1 to the November 18, 2025 business meeting action item.

[03:19:33] Motion is made and seconded by Supervisor DeCrony. Discussion on the motion, Mr. Turner. Discussion on the motion. Mr. Sains. Thank you, Madam Chair. Can somebody clarify for us, if we, whatever the vote ends up being, this goes to FAA for review and analysis, and say they have further

questions or say they do their environmental analysis and say, oh, this doesn't look right, will that come back to us for further review and make any changes, or is it just with them and they make their decision and it moves on?

[03:20:10] I'm going to direct you to item number four that you pulled out of here. that doesn't answer the question okay all right yeah that doesn't answer the question we can make the request i i can i can speak to that a little bit if you'd like sure yes please okay so on the north side of dca we did achieve community consensus the recommendations went to the faa the faa started the implementation process i made myself available for them to ask any

[03:20:45] questions when they came back i negotiated with them any changes that they were going to make and went back and informed the communities of what the changes were and got their consensus back that yeah okay those were okay um so there there is some communication that we will be doing with the faa going forward should they need it okay that answers the question thank you Ms. Brixman. Thank you, Madam Chair. So this is the recommendation that would have the direct heading off of Route 3, I'm sorry, Runway 3, and then the red lines where all the planes go in the

[03:21:24] same channel, correct? No, no, no. That's not true. Okay. She asked a question. Everybody else be quiet so she can get a question answered. Mrs. St. Turn your light off. Okay. This is the nighttime rule?

[03:21:40] Is this the one you're considering right now? Yes. We're number two right now. Yes. Yeah. Okay. So the nighttime rule is where aircraft will between the hours 11 at night and seven in the morning they'll just fly straight ahead off the runway until they leave 3 000 feet and then they'll they'll turn so today they turn right off the end of the runway day and night what this will do is it will preclude them from turning over the most densely populated areas until they're at much

[03:22:08] higher altitudes okay um so it's every plane that's going out at night is going to go straight ahead on the dotted line and then make a turn and only go the routes of those red lines no ma'am at night at night actually they'll continue further out um before they turn you can calculate about 500 feet per nautical mile before they turn that that'll put them about three to five miles out

[03:22:42] before they turn and that that's dependent upon their climb and then once they turn they'll be at 3 000 feet or higher and once they get back over any densely populated area they'll they're usually between six and ten thousand feet okay okay thanks thanks for the clarification Mr. Letourneau?

[03:23:04] I turned it up. I'm good with this. Okay. 11 to what? Nighttime meeting, 11 to what? 11 p.m. to 7 a.m., so long as traffic conditions permit, as I explained in my briefing. Are there less or more of the same number of flights that go out during that time period?

[03:23:25] Much less. Much less. Is Dulles Airport, it doesn't close, but is it a time where they, is it more freight, not freight, but like UPS, Amazon flights, cargo, thank you. There's a lot of cargo that goes at night.

[03:23:42] It's more the cargo. There are flights that go at night, but it's much, much less airplanes at 11 p.m. to 7 a.m. Much less airplanes. That's good to know. Okay. Thank you. Mr. Turner, would you like a closing? Thank you, Madam Chair. Just let me clarify really quick. So on recommendation number two, recommendation one and two are short-term solutions.

[03:24:06] Recommendation three is a longer-term solution because you have to redefine the standard instrument departures. My question is, if this passes and the FAA accepts it and MY accepts it and they are

doing RNAV off the ground with the NADP1 procedure, so they're higher up and we're consolidating over the least number of houses, And if they implement that, would then the nighttime noise track go away and be replaced by RNAV off the ground in combination with NADP-1?

[03:24:35] No, it was our intent that the nighttime noise track remain, simply because it ensures that the aircraft stay over commercial industrial areas and the least dense populated areas as long as possible at night.

[03:24:52] Yeah, during sleeping hours. Okay, great. That's all I have, Madam Chair. Okay. Motion made by Supervisor Turner, seconded by Supervisor to Crony. All in favor, please say aye. Aye. Any opposed? That motion will pass 9-0. Motion number three is the motion, I think, where Robbie believes he lost his hair, although I have not known you to have hair, sir, so I'm just going to say that.

[03:25:14] Okay. But we're going to go in and make that motion right now. Mr. Turner? I move that the Board of Supervisors endorse a design group recommendation to modify runway transitions for all runway 3-0 area navigation standard instrument departures as provided in Attachment 1 to the November 18, 2025 Business Meeting Action Item.

[03:25:32] Motion is made, thank you, Mr. President, Mr. Crowley. Discussion on the motion, Mr. Turner. Very briefly, and just to reiterate, so this is in combination with NADP-1, which gets the airplane higher and quieter much faster and up to 3,000 feet before they, before they, I'm sorry, it gets them to 3,000 feet faster because they're flying NADP-1.

[03:25:56] And then it consolidates what they're currently using, which I believe was nine R-NAV routes spread out all over houses on the west end of runway 30. This consolidates those along recommended routes with R-NAVigation, again, climbing to 3,000 feet as quickly as possible to impact the least number of homes.

[03:26:20] So I think this is a very good option, though it might take a little bit longer for the airport to implement. Thank you. Thank you. Ms. Brixman? Thank you, Madam Chair. I'm afraid, I appreciate all the work that everyone's done here.

[03:26:36] I understand that consensus is something that we're going for. However, I cannot support this part of the recommendations. I can't in good conscience send all the planes over the same houses long term.

[03:26:57] and we do have some developments that haven't been put on the ground yet and we already unfortunately voted to put a data center next to those houses which i voted against i'm not going to vote to put every single almost every single airplane coming out off of runway three over those houses i'm hopeful that the first two recommendations will help alleviate some of the noise for those who are being disturbed by it, I just can't support number three. Thank you.

[03:27:35] Mr. Zanes? Thank you, Madam Chair. Yeah, I cannot support this recommendation at this time. Can somebody clarify for me those neighborhoods that are under construction or will be built, were they part of the working group? Communities that have yet to be built, no, did not have a representative. Okay. And then definitively, can somebody answer that this area possibly was not hearing any airport noise or had less airport noise, but now it's going to go, if this, in my opinion, this might increase their airport noise. Can you

[03:28:13] say that's not accurate? I'm not sure I fully understood the question. So, okay, so we have the four routes in the top right-hand corner that you had earlier. Could you definitively say that they're going to continue having airport noise in those areas? I think there is currently airport noise in all of the area, and I think there will continue to be airport noise in the entire study area. I think it's a matter of reducing it everywhere except for where those proposed tracks are. Okay, so would you say it would possibly increase in that area? It would possibly

[03:28:52] increase in the area of the tracks, mitigated possibly by the implementation of NADP1. So you're just saying, yeah, that's the issue for me. I cannot have one area where, yes, there's an issue but then hypothetically move that issue from their area and then move it possibly to another area and that area has more airport traffic well right since you showed that slide josh um show both of them so um the the 3 000 foot runway heading until they turn if they turn

[03:29:29] north air people north of the airport where the airplanes fly will get noise but people south of airport won't when they turn south people south of the airport will get noise where people north of the airport won't so it's a wash so there is really no overall increase in noise it's a shared that was not how it was uh relayed earlier and the slide again that shows the four tracks in the red in the right top right corner those are going to be the paths that those planes fly all the time possibly so then if i'm in that area that's during the day that's what we're talking about

[03:30:08] that's what i'm talking about and they're going to be receiving that that noise all the time we're currently right now there's possibly not don't take don't take those red tracks as gospel because that's um that's a model that's an average of where the airplanes are going to fly they're not all the where they start curving up to the northwest that's an average of where the airplanes are going to fly. That's not exactly. In close to the airport, yes. Out there where they start curving, that's an average. I really appreciate the working group's time, the consultants and staff's time on this, but I will not be supporting this motion. Thank you, Mr. Sains. Mr. Letourneau.

[03:30:46] Okay, let me try to consult. I think the concern here for me is on the south track, not necessarily the north track. I take the point that NADP1 is going to increase altitude and therefore decreased noise. But you currently have noise, as others have experienced, miles away from the airport today when those aircraft are already at several thousand feet. So you cannot convince me that you're going to have an aircraft over 3,000 feet where it's taking the turn where it says Briarfield Estates on that line there. So as extensive as the process was, and I know it was,

[03:31:21] and as welcoming as we tried to be, the reality is there were people sitting in their homes at this very moment who have no idea what this board's about to recommend that we do, which is consolidate what is currently thousands or hundreds of tracts into one, sending them all over those particular homes. And furthermore, the board did decide to go ahead and put several hundred more homes, affordable and otherwise, in that exact area. I don't think anybody sitting up here in the position of representing those people would be comfortable with being responsible for making that recommendation at least without them absolutely knowing it and being able to communicate

[03:32:00] that directly with them which hasn't been done so this is not about birchwood and brambleton because that's the north track concern and i think that's really what got us into this discussion in the first place so i'm not i'm less concerned because it's a further if you look it's it's it's another you know i don't know how far that is but it's probably another quarter mile at least before the terms made. But the

question is, does the NADP1 departure that increases altitude mitigate enough of the noise? And there's people up here acting with certainty that it does. And there's just no way that I think we can have that certainty knowing what we know about what the noise patterns are

[03:32:40] against the airport right now. So if this motion doesn't pass, I would be willing to go back and do it at a different point. But I'm especially feeling that we have residents who live in these houses right where that track is who weren't part of this process and don't know that we're having this discussion and that is not right it just isn't and it is not right given that some of the concerns that were expressed about the consultant and about the fact that the perception is that this is a brambleton-led process which as i said the south turn here really is irrelevant to any of that i'm not concerned as much about what what we're doing to mitigate on the north side it's

[03:33:17] just the south side. So I think we needed a minimum, a little bit more time to try to work through notification on this. And then potentially, I don't know if I'll get there on, at least for myself, on being willing to recommend this. But if this does end up as a detriment for that group of residents, I don't want to be part of that process, even if that's decided by other people.

[03:33:42] Thank you. Mr. St. Jim, have you talked on this already? Sorry. We'll just put you in that light, man? Mr. Crone? So how many, I think we invited initially about almost 30 HOAs, am I correct? I think it came down to about 18, right, that ended up participating? Yeah, there were 30 plus communities that we had identified that were within the area of influence. Right. But we had chosen nine initially and then we added South Riding later as the sort of the

[03:34:20] representatives of those areas. So those nine were intended to represent the other smaller communities. Yeah and they were intended to represent kind of the unbuilt communities as well right because they were nearby or well we we never really identified the unbuilt communities so with the exception of one or two that that were labeled on there I wouldn't say necessarily that that's the case. Yeah, I just I think we need to be clear. It's not just one community. So what Supervisor Letourneau said, this is not just one community that participated in this lengthy process. There were ten and

[03:34:59] they came to consensus. There were communities in the south that participated. South Riding. A lot of these are in my district, by the way. Lena Mills in my district, Heartland, Willowsford, I would say a large majority are in my district, Meadows, and I believe there was community consensus, and this provides the most relief for the most residents as far as noise, and the capacity is still going to be the same, but it provides the most relief, and I think

[03:35:35] doing one and two, it makes sense to do three, because, again, they work together, they work hand in hand to get the most relief but I do want to reiterate that there was a large group at the table this there there people weren't there was not misrepresentation I think we did do our due diligence inviting as many communities as possible in the north and in the south and a large portion are in my district they're not in the Dallas district they're in my district and I do believe

[03:36:12] there was consensus. And I think this will provide the most relief to the most residents doing all of these together. Thank you. Thank you. Mr. Kirshner. Thank you. So this is not in my district, but I may be boiling down to be the swing vote. I don't know on this. The way I understand that southern route, it's all the planes. I guess the concept is, hey, we're going to be high enough we're not gonna we're gonna have less impact but how did we come up so the southern route it's it's all in one stream correct they're all following the exact same route is that

[03:36:52] is that fair to say right there yes yes sir about approximately half the departures off the airport will follow that route and was it considered to spread that out a little bit more so it wasn't so intense on everybody else and what was the thought process there so the reason that route was picked where it was was due to the criteria that requires an aircraft to turn away from the other route within two miles but no closer than one mile and if they turned it one mile there wasn't a good route there if they turned at uh if they if they can't turn beyond two so to stay within criteria

[03:37:32] of where we could put the airplanes this was the best route available but from that turn why not spread it out so it's the houses which are underneath feel less of the pain so to speak right well that's basically what you have today and they the airplanes that turn to the south i mean they go all over the south they go all over south riding and um what is it stone ridge i think it is down there they they go all over the place down there and the the folks on the design team which let me reiterate they're your community members that came up with this it wasn't

[03:38:09] Vionair that came up with this. It was your community members that came up with this, and they agreed, consensus, that this was the best option available. So I guess where I'm leaning is, in some ways, this process has kind of picked winners and losers as to who's going to get the greater intensity and who isn't.

[03:38:32] And I'm not sure. I'm leaning towards voting no on this one specifically just because of that. There does seem to be maybe a better process for this, but I'm willing to revisit this at a later point. But at this point, I think I would probably not support number three.

[03:38:48] Now, if I can be convinced that the NADP1 route is mitigating sufficiently enough, which it doesn't sound like it is, although it's perceived, to reduce the noise significantly enough to allow for that single route coming out of this on the southern, then I might change my vote, but it doesn't sound like that's the case.

[03:39:13] Josh, can you scroll down to the NADP-1 slide going south? Like there, yeah, not that one.

[03:39:29] Up, up, up, up, that one. So it shows where the airplanes are turning that you're starting to get negative numbers, which is a reduction, that's not it. Thank you. Which is a reduction, there you go, in noise.

[03:39:46] So it's a perceptible reduction in noise for the aircraft following those routes to the southwest. All those green dots are reductions in noise. And you're getting four, some twos, some fours. Anything less than two is not shown.

[03:40:04] Up to the north, you're getting some fives. Up there, there's an eight in there. So this is the reduction in noise that you get by NADP-1 along those routes. You know, the interesting thing is the reason I'm voting for this is something Ms. Letourneau said to me a long time ago.

[03:40:24] Ms. Letourneau, you are the reason I'm voting for this because when we've talked about this before and I've made the statement that, again, to the naked ear, it doesn't really make a difference where you're at in some of these elevations. And you convinced me at that time that to the naked ear, if you are even a little bit higher in elevation, it makes a big difference in noise.

[03:40:47] And I remember that so well, because I was thinking, really, does it? And you were very sure that elevation made a difference. Now, do I know negative 2, negative 3, 0.3? I don't know. But I know that I

can't be told one thing at one time and then something else at another time.

[03:41:05] I do know that. So if it is true to the naked ear, it matters, then these planes being higher matter. And so this continues to be, that's why I keep saying it like that. That's why I keep asking the question like that, because I literally don't know what four versus three versus two, what that sounds like, if that's actually any different.

[03:41:30] And the only thing I can actually do is rely on the people who are, quote, unquote, experts in this. And so that's what I'm doing, and rely on what I've been, I mean, I've actually voted a different way before because I had a colleague in Mr. Turner who I believe knew what he was talking about. So if he knew then, he knows now. So I'm just, I can't change that vote now.

[03:41:55] My other question is, so that's my first question, to the naked ear, where these flights will go if we say yes to this, is it making a real difference in the elevation? Is their experience going to be different than, is their experience going to be significantly different? That's my first question. My second question is this. Anyone who's moving to this area who lives here where the planes will be going, if they've moved there already or if they're going to be moving there, are they required to sign papers that say that they are in the airport overlay district? Are they required

[03:42:30] to do that? Do they know they're going to be there when they come into this area? I'll answer that. So your second question is talking about the disclosure. Yes. They're not required to sign it when they move in, but there is a requirement on the developer to provide that disclosure to the initial home buyer.

[03:42:49] So they're required to know it, but they're required to be told it. There's a requirement that the developer inform them in writing. I have found, depending on where it was and how it's done, some of these disclosures are very strong and very clear, very clear.

[03:43:07] I have found others to be buried on page 453, and it doesn't make a difference at all. Is there anything we can do to make that disclosure clear word to anyone who wants to move? I think we chewed on that during the overlay district updates a few years ago, and we have a number of different documents where the disclosure is required to be provided.

[03:43:34] So I don't have the whole list in front of me, but it is on all sales documents, on all brochures, and on all site plans. It shows up in a number of places. We did have lengthy discussion on all the different documents it needs to be on. So it's not just in one place?

[03:43:49] It's not just in one place. There's also an easement, a navigation easement, if you'll remember, over all of these properties. Okay. All right. Thank you. Mr. Turner, would you like to have a closing? Thank you, Madam Chair. Can you throw up the slide with the white concentrations and the red lines on it?

[03:44:07] Okay, so this has the red lines that consolidates what are now nine RNAV routes into basically two RNAV routes, a north route and a south route. You can see that the airplanes are already flying the north route and the south route.

[03:44:28] It's already being done. We're going to implement NADP-1, which means all the airplanes that are currently flying on those thick white lines are going to be quieter by definition. Mr. Allardyce and staff, Josh, is it your opinion that the recommendations, the three recommendations taken together, significantly reduce noise for the most number of homes situated on the departure end of Runway 30?

[03:44:55] Absolutely. I would second that. Okay. The second question is, Jim, you've worked with the FAA on the DCA. How do you think they will react with just option one and option two passed when the community's consensus was implement all three of these recommendations and we only implement two?

[03:45:21] Do you have any sense of how I'm on the FAA will interpret that? And that's a loaded question. If you don't, if you don't, you don't. it is and and i don't um i i think that the important part going forward is that the community has consensus on the recommendations that are put forward so since the community came up with these and they had consensus on the recommendations if this is to go forward the faa will view that favorably okay that's good that's all i have thank you i want to thank you guys when then when we

[03:45:57] first past the airport overlay district, I thought, well, here we go. And I insisted on a meeting with the community the next night, which we had in the Dulles room, because I wanted to pass a message on, we are not going to play rope-a-dope for 10 years trying to get this done. And I know the twists and turns that Vionair and the local community and Josh and his team have all gone through over the last three years to get to where we are. And based on everything I've ever learned about airport noise and about communities objecting to airport noise, this is the purest, sweetest solution I've ever

[03:46:34] heard of around an airport that's just kind of laid out. So I really, really encourage my colleagues in the strongest possible terms to pass this motion. Thank you, Madam Chair. Well, okay, this is a motion.

[03:46:51] This motion is the purest, sweetest motion I guess we're going to vote on tonight. It was made by Supervisor Turner. Supervisor Turner, second by Supervisor Crony. All in favor, please say aye. Aye. Opposed? No. Okay, if you're opposed, raise your hand.

[03:47:10] One, two, three. That motion will fail. With Supervisors, Bricksman, Sainz, Kirsner, Onstead, and Letourneau voting against the motion. Mr. Vice-Chair, if I can make the last motion.

[03:47:30] I move the Board of Supervisors to direct staff to provide a status update at the future business meeting during the first quarter of calendar year 2026. I will second that. Discussion on that, Mr. Turner? No. Okay.

[03:47:45] So I want to say first thank you to the community. Oh, I'm sorry. I missed that. I'm sorry. Mr. Letourneau, my bad. Yeah. In light of the last motion. Whoa, whoa, whoa, whoa. I made the motion? No, he made the motion. Okay, Mr. Letourneau.

[03:48:00] In light of the last motion, I am willing to entertain further discussion with this related to the South issue. I just want to clarify the board's rules of order as it relates to bringing an item back. It would be the next business meeting. How is this being transmitted to the FAA, and what is the timeline on that?

[03:48:25] Yeah, the next step from here would be moving to the regional project group next week and asking for a vote from that group. And after that, Vionair would be working on the transmittal to the FAA. Okay, I'll leave it to my colleagues whether you want to proceed on that.

[03:48:44] One of the points I was trying to make was, although you all talked about community consensus, I'm telling you as the supervisor for the particular communities where the turn is, they were not part of the discussion. So, yes, there was community consensus elsewhere, but having not had the ability to talk to the community that is right there on the map, part of my concern.

[03:49:07] So, if you do want to slow this down, I'm willing to continue to try to work on this, but if you want to just move forward with the other two, that's fine also. I'm supportive of that motion with the status update, certainly.

[03:49:23] Supervisors and staff, I'm going to change my motion on the last vote. I'm going to change my motion to a no on the last vote. Yeah, talk later. Ms. Bricksman.

[03:49:40] Thank you. Understanding Supervisor Letourneau's concerns and trying to communicate with potentially impacted communities, My issue is there's new potentially impacted communities going in there, and a good chunk of those are attainable homes.

[03:50:00] And there's no way for us to communicate with them about how they would feel with this because those homes haven't been built yet. And we did have recently an incident where we realized that the disclosure, and I can't remember what the disclosure was, it might have been an airport noise.

[03:50:19] It wasn't an airport noise. It was or wasn't? It was not. different type of disclosure that the it was the buyers were supposed to get it was done in such a funky way that apparently the buyers really never saw the document that they signed that they said they were offered to view this document so I guess I'm saying I don't fully trust that process and so and I'm I'm very concerned about our attainable projects being under all this airport noise and next to a data center which again i voted against thank you happy to support them

[03:50:55] coming back though for an update mr crony so um do you come back for an update at t-lock uh no ma'am the the procedure that we drafted up would be that we we uh would be reporting back to the board with the next set of information you already so this we may not need this motion right you'd be reporting back anyway well the the motion is just to give staff clear instruction to report back within the the first quarter of the calendar year. Okay because I know I know you came to TLUC for like years. Well it was at least two years and we were and then we were forwarded out of committee to

[03:51:34] the board so procedurally we believe we're in front of the board now unless we're directed to go back to TLUC. Okay well I want to thank everybody who was involved. I am disappointed the three weren't approved together. I do think that that would have the maximum benefit of relief for the most amount of residents so I am I am disappointed it was a it was a consensus project it was the community came together and came up with these recommendations and I think they should have stayed together hand in hand and they should have been approved together so I am disappointed

[03:52:13] but I look forward to hearing I guess the next what goes on in the next steps thank you so to Ms. Bricksman's question, I would say it was just the opposite. The airport disclosure, which you're talking about, was incredibly clear.

[03:52:31] It was there. It was clear. It had its own section. It had numbers, all of that. And so, yes, they're not there yet, but that's why I ask about disclosures in general. And not only is it going to be in different places, it's also been on the websites of the HOAs when people actually go to buy the so it's it's there now whether people do anything with it or not it's there so just to answer that um yeah one more time let me change my vote in the last vote on the last on the last item and uh and i look forward to you all coming back also one

[03:53:11] thing have the airlines had any input or any say at any of this jim are you able to answer that question yeah so like i said earlier um we have talked to a few people i know some folks on the board have

talked to a few people but the airlines have not formally had an opportunity to make uh an assessment okay um but the feedback that we got was generally positive okay all right i do want to thank the community and talk to them right after we finish with this item but i do want to thank the community because my gosh you all have come together and worked so hard on this so thank

[03:53:49] you mr turner thank you madam chair and i'd like to echo that thanks to to the whole team to the community has been very engaged this has really been a yeoman's job and you've done terrific work i really do appreciate it and if so the recommendation from the board is to implement nadp1 and to establish nighttime departure procedures if that's where we end up correct me if i'm wrong anybody that's a fairly substantial improvement over what we have right now correct we believe so yeah i think so too well again thank you all very much and thank you the community this

[03:54:23] was really terrific i appreciate it i we have a question regarding next steps so um i think it was supervisor turno asked josh about next steps and so right now there's the scenes actually but yeah excuse me the meeting um with the regional group for next week but y'all's discussions indicate that this may come back at a future meeting would you request that we defer that regional meeting and reschedule it until later so that does not occur before the December 2nd meeting? No, I would not. Okay. That would not be mine. No, I would not. No. Okay. Okay. All right.

[03:54:58] Motion is made for Supervisor Vice Chair Turner. I second the motion. All right. Please say aye. Any opposed? That motion will pass 9-0. Okay. We're going to take a break. Mr. Turner, would you read us into the first closed session? Well, not the first closed session. It's closed session number three. The closed session we're going to take at the dinner break. I move the Board of supervisors recessed this public meeting and entered in a closed session pursuant to sections 2.2 3711 and 829 of the code of Virginia to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where

[03:55:34] negotiations in open session would adversely affect the bargaining position of the county. Motion is made second by Supervisor Brixman. Discussion on the motion? All people say aye.

[03:55:45] Aye. Opposed? We are in closed session. First of all, we are back. Secondly, I want to remind

[04:26:25] everyone we have not taken a break yet so we may have to do that because we haven't done that yet but we're going to read out a closed session first. I move that the closed session be adjourned that the Board of Supervisors reconvene this public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflected in the minutes of the public meeting. Questions made seconded by Supervisor Brixman. Discussion on the motion. Seeing none all people say aye. Aye. Any opposed? Everybody to please

[04:27:02] confirm it's firm firm firm firm firm firm firm firm firm firm Mr. Sainz do it again please firm thank you because he wasn't on he was on the mic and I will affirm as well thank you everybody supervisors we have to do nominations board comments I the location and design endorsement from North Star Boulevard and intersection improvement programs updates and then we need to go back into closed session for the rest of our closed session items I will do Mr.

[04:27:38] Reiser's first we go back in the closed session but but I I think we actually do need a break I'm sorry when we go in closed session we can't take a break and so we have not really had a break since we

came on the day I said four o'clock so everyone let's take ten minutes no kidding ten minutes and then

[04:27:56] let's come back and do nominations and board comments they turned me back on thank you um

[04:39:33] all right we're back let's do nominations if you have a nomination please put your light on no nominations okay let's go to board comments uh board comments uh go first to miss umstop thank you madam chair and i am under direct orders from supervisor kirschner not to say anything other than required disclosures. So on the 5th of November, I met on the residences at Dulles Plaza with Ben Wales, Stephen Collins, and Nathan Hammond, and that's all I have. Thank

[04:40:12] you. Uh, Ms. Tacroni. Well, I didn't get direct orders, so. On November 13th, I met with Ben Well, Stephen Collins and Trey Kirby regarding LEGY 2023-0029 residences at Dulles Plaza.

[04:40:34] On November 14th, I met with Packy Crown, Aaron Swisholm, Gilberto Cardens, Max Glickman, and Matt Engel regarding the Ashburn Park and Ride Attainable Housing Project. I will be holding office hours in Heartland in Aldi on Thursday, November 20th from 3 to 6.

[04:40:54] I'll be at the Heartland Clubhouse at 23244 Lansing Woods Drive. This is a great opportunity for constituents of the Little River District to stop by, share concerns, share ideas, seek assistance, or just say hello.

[04:41:11] I'd love to meet you. On Thursday, my staff and I will be volunteering at Loud and Hunger Relief. Last year, Loud and Hunger Relief served over 14,000 individuals and distributed about 2.5 million pounds of food to the Loudoun community.

[04:41:28] Loudoun Hunger Relief has been serving Loudoun County since 1991. You can find out more and how to volunteer at loudounhunger.org, and please consider donating items, food or money, to our wonderful food pantries over the Thanksgiving holiday.

[04:41:46] I want to wish everybody in Loudoun a safe and enjoyable Thanksgiving. I'm grateful for the many people who helped make this county a great place to live, work, and play. And I hope everyone is able to take some well-deserved time to relax and enjoy the holiday. Happy Thanksgiving.

[04:42:03] Thank you very much. Thank you very much. Mr. Letourneau. Thank you, if Mr. Kirsten is okay with him. The only thing I was going to say was actually just to echo Supervisor Tocroni and wish everybody a happy Thanksgiving. And also, just a note, particularly in my neck of the woods, Dullesville Food Pantry is doing Thanksgiving packages for people.

[04:42:23] They have hundreds on the list. You can actually donate a turkey at the giant checkout. They have a special deal going. You just tell them, and they'll put aside. It's like literally just a couple bucks, and they'll make sure a turkey gets donated. So that would be a great thing, and I'm sure other food pantries doing have similar programs.

[04:42:41] Thank you. Thank you. Mr. Sains. Thank you, Madam Chair. Mandatory disclosures. On October 24th, I spoke with Mike Romeo of Wascolucci about his client with the Dulles East residential application. On November 3rd, I met with the Opiden development team regarding the Sterling Park Data Center.

[04:43:09] And I can't believe it. Well, happy Thanksgiving to everybody. Enjoy the time with your family and friends and loved ones um and i can't believe i'm saying this gonna right after thanksgiving then we're

gonna roll right obviously into december so we have um operation santa that the sterling volunteer fire company does every single year and does it very well on december 8th there'll be santa will be showing up in sugarland december 9th sterling north december 10th sterling east december 11th sterling south december 12th one loudon uh december 13th

[04:43:44] countryside, December 14th, Cascades, December 15th, Great Falls, and at the Clodmore Rec Center, you will be doing, you can write letters to Santa on December 5th, so bring the little ones out to the Clodmore Rec Center again to write letters to Santa. And with that, that is it. Thank you. Thank you. Mr.

[04:44:06] Kirshner. Thank you, Madam Chair. I'll be brief. I have no disclosures, and I have no board comments other than to say happy Thanksgiving to everyone. Thanksgiving, as I've said before, is my favorite holiday.

[04:44:23] Not only do you get to get together with family, have great food, and spend time fellowshiping, but it does remind me of how blessed we are in America to live in such a great country, a country that was started sometimes at difficult times. And when the first pilgrims had that Thanksgiving with the Native Americans who were here, they gave tremendous thanks for, even though they had lost many, many, many, about 50% of the folks had come with them that previous winter, and we've grown as a nation and obviously tremendously blessed, and it's just a reminder to us all that to think of the things that we do have, not necessarily the things we don't have, so I'm incredibly thankful.

[04:45:02] I'm thankful for this board, thankful for this job, thankful I get to represent the people of Loudoun, specifically the people of Catocin, and I continue to pray that I will do a good job for them, as this board does as well for Loudoun County. Thank you, Madam Chair. Thank you very much, Ms. Bricksman.

[04:45:19] Thank you, Madam Chair. By way of disclosures, my office met with Molly Novotny of Curata on the Cochrane Tech application on November 7th. Also on November 7th, my office met with Paki Crown, Steve Donchez, the Batchelders, and the Pantovics property folks on the Pantovics property rezoning.

[04:45:42] Down at the Virginia Association of Counties annual meeting, I had the privilege to moderate a panel on child care as an economic development issue with Delegate Brianna Sewell and Karen Bowles of the Virginia Early Childhood Foundation. I was able to share my story of coalition building here in Loudoun with the Loudoun Chamber, our unions, local colleges, nonprofits, and the Loudoun County LCWAG, all who supported the ARPA child care fee reduction proposal that was passed by this board.

[04:46:13] And the chamber, Loudoun chamber, has now included child care in their legislative agenda and their policy positions right next to housing. So really proud of that. I also was excited and honored to join Lieutenant Governor Hashmi's transition team meeting last Friday in Richmond.

[04:46:33] It was just a privilege and an honor to be there with everybody. I will be serving on the Subcommittee on Housing and the Subcommittee on Energy and the Environment, sharing the local government angle on those two issues.

[04:46:49] So really proud and excited to be able to do that. I want to give a shout out to Lieutenant Colonel Sawyer, who has been working with me for, I think, two years to try and figure out how the county and or our school system and/or the Sheriff's Department can actually support and pay for the D.A.R.E. t-shirts that our elementary schools get for the kids every time they go through the D.A.R.E. program.

[04:47:17] It has been incumbent on the PTAs and PTOs of our elementary schools to raise the money for those shirts, and I learned about it, actually, I think when I was touring some elementary schools with school board member Chandler, and we've been trying to figure out a way to get that resolved, especially for our Title I schools, 'cause it's very difficult for them to be able to pay for those shirts.

[04:47:40] So I think we have it resolved. I think there's gonna be an item coming to Finance Committee on that topic to make sure that all of our elementary kids are covered with their D.A.R.E. shirts. And I, again, wanna thank Lieutenant Colonel Sawyer for working so hard on that with me. The Gun Violence Archive statistics.

[04:47:56] There have been 13,009 total gun deaths in our nation so far this year 374 mass shootings this year in the united states the deaths include 200 children under the age of 12 and 900 teenagers the ages between 12 and 17. thank you madam chair thank you miss glass thank you madam chair uh disclosures on thursday october 23rd my staff met with representatives from curata to discuss the concord dates and application and residences

[04:48:33] at Dulles Plaza rezoning application. On October 27th, my staff participated in a pre-meeting to discuss the Broadland's main entry sign replacement. On Monday, November 3rd, I met with representatives to discuss the Ashburn North Park and Ride residential rezoning application.

[04:48:53] Friday, November 7th, my staff met with representatives from Curator Partners to discuss Cochrane On Monday, November 10th, my staff met with representatives to discuss the Pantovic property rezoning application, and I believe it was last week, on November 9th through the 11th, I attended the VACO annual conference, and I am part of the Education Committee.

[04:49:24] There were a number of things that we were discussing. A couple of things were additional statewide funding options for localities for capital and school construction costs, state incentives that encourage localities to increase teacher salaries, to reflect the national average.

[04:49:42] We also talked about teachers who are overwhelmed by standardized testing. It was a couple of Saturdays ago, I went to the Thomas Balch Library, preparing for the 250th celebration of our nation, which was hosted by Alicia Cohen, where they had the American Revolution Symposium.

[04:50:07] It was very well done. I was there for the first part of the symposium. It was from 11 to four. And first, there were a lot of things that I learned. And first it was the Revolutionary War was an integrated war.

[04:50:25] According to an estimate by a French officer fighting at Yorktown, up to a quarter of the rebel forces were made up of black men. He quoted, and among them there were able-bodied, strong, and brave fellows, he wrote.

[04:50:44] Also learned that Loudoun County had a large number of patriots and loyalists. Many of them were often seeking freedom. One was Daniel Coleman, a vet, who settled in Loudoun County after the war, and he collected a pension from the Loudoun County Courthouse until his death in 1860.

[04:51:04] There was also James Armistead Lafayette, who was a double agent for General Lafayette. I also learned, on the average, the estimated term of military service for white patriots was nine months.

[04:51:20] For black patriots, it was 60 months. And there was a reason why that. So, oh, man, I ran out of time. Very interesting. I think we all know the reason for it. Yep, freedom and granted land.

[04:51:39] But that was fine. Land, grant. I think we all know the reason for it. Mr. Turner. Oh, thank you, Madam Chair. We passed on consent tonight the expedited, attainable housing application process.

[04:51:56] That was originally suggested by Mr. Kim Hart, and I took it to Department of Planning and Zones and said, what do you think? And they said, sure, we can do that. And that was kind of the initiation, and it has gone very well. And I know there's been a great deal of work by county staff to work with developers and figure out this process and streamline this process.

[04:52:16] So I just wanted to commend them. I meant to do that on the consent agenda. I didn't. Second, at the last meeting, Supervisor Tricroni introduced a motion to reconsider a motion that had passed previously, and in my comments, I said something that I felt awkward about, and I went back and looked at the tape, and in fact, it was inappropriate.

[04:52:38] I implied in my comments, because I was trying to figure out a reason for why we were reconsidering this motion when really nothing had changed, in my view, but I implied that Supervisor to crony had not done her homework before bringing this reconsideration motion and that was completely wrong and inappropriate and i apologize to friday crony for doing that um first of all it was wrong but second of all it was nonsensical everybody on this board and every staff member in this building knows that supervisor to crony superpower is the research she puts into every item and everything she says from the dais so again i apologize and then um finally i'd like to institute a new process

[04:53:16] for my board comments if i can find it on november 18th 2025 in air force history this includes a record-setting flight by a b-47 strata fortress uh that flew for 47 continuous or 70 74 continuous hours. And also on November 18th in 1966, an X-15A2 flight, the pilot exceeded Mach 6.33, which was 4,200 miles an hour in an airplane, which was pretty amazing. So that's all I have.

[04:53:56] Thank you, Madam. Oh, and I also, yesterday, Monday, November 17th, I spoke with Michael Capretti about general land use topics and referenced the Tuscarora Crossing application. Thank you. Thank you, sir. Let's see. My staff met with Panavik Applications on 11-7, met with Cochrane Tech on 11-7, and met with Krakata Concordia Data Center on that same day also. I do want to say that there was this week a corrections officer named Jeremy Lewis Hall, who was killed

[04:54:31] by an inmate at one of our correctional facilities. Having worked in jails and prisons for years, I can say corrections is a very important yet very hard job. In fact, I think it's one of the hardest jobs in law enforcement and absolutely one of the most underappreciated jobs in law enforcement. So we send love and support to correction officer Hall's family.

[04:54:56] It is quite the tragedy. I also want to say that I am very disturbed by the fact that There is a purposeful, today announced a purposefully unraveling of the Department of Education by the Trump Administration, although we knew that was going to happen.

[04:55:16] It is actually now happening. We should remember why the Department of Education was actually created. It was because some states decided that they didn't want to put money into education. And in some states, kids were falling woefully behind. other inequities were very clear in certain states. And if, you know, there is a place for state government and federal government to work together, and the idea that we will dismantle some of the most critical programs in federal government that has helped young

[04:55:52] people across the country have the most equal education possible is very disturbing. And there are counties where the only money they have for their education system is their federal and or state money. That's all they have.

[04:56:07] We are very lucky in our county that that's not true. But there are states that are like, places that are like that, including here in Virginia. So I was really, really, really disturbed by that. And I will continue to talk out on that because in so many places, education is your way up.

[04:56:23] It's your way out. And at the very least, education gives you a life with options. You may want to go to college. You may not want to go to college. You may want to go to trade school, you may want to go to military, you may want to go to the workforce, but you have options when you at least finish high school. I also want to say a happy Founders Day to the good brothers of Omega Psi 5 Fraternity Incorporated.

[04:56:45] They were founded November 17, 1911 at Howard University and the Q's are, they are the good bros. We just love them. And finally, I do want to say happy, not happy Founders Day, happy Thanksgiving to everybody. We hope you spend it with people you love and who love you and you feel like some downtime, some support, some love.

[04:57:08] And my offer to go Black Friday shopping with me is open to everybody on this board if you'd like to go. If you come sit in a tree stand with me first. First? First? I got to do that first? Not first.

[04:57:25] All right. Thank you, everyone. All right. Let's go to the next item. Thank you Mr. Crony for the next item. It is the, well actually it's item 1J, the location and design endorsement of North Star Boulevard, Tarsitas Parkway, Tabraddock Road, that's in the Dulles, and the Little River District.

[04:57:52] And the Little River District. Mr. Crony, do you need something particular on this item? Yeah, I'll put your mic on. I don't need the presentation.

[04:58:07] Yeah. Mr. Letourneau, I know you didn't ask for that, but do you need anything? No. Okay. So you don't need the presentation, correct, Mr. Crony? No. You just want to ask a question. Right. Okay. Is there anything new we should know that we don't already know? You guys are like, no, no, there's not. No, ma'am. There's really not. You're good. There's nothing new that we don't already know. Okay. Mr. Crony, what's your question, ma'am?

[04:58:32] Thank you, Chair Randall. So Cerulean is being built by Van Meter on kind of the side of Braddock and North Star. And I was wondering regarding the shared use path, if we are getting them to help participate in that with the construction of some of the shared use path. You know, they're in the beginning stages of building, so there could be that opportunity.

[04:59:03] This is Supervisor Tacroni. This is currently included in our project without a share. We can follow up with them to see if there's any opportunity for overlap or coordination.

[04:59:19] Okay. So I had a few firemen come up to me from the Kirkpatrick station, and they were asking if there's any way to expand that shared use path on the western side to Gardenia Drive and Emerson Oaks Drive is the other, you know, because as you know, you know, right now it costs \$9 to \$10 million a mile to build a shared use path.

[04:59:49] So it is more efficient, I believe, to do it in this process while we're out there doing the construction versus to come back later. And, well, but no, this isn't jumping the line. This is, so it goes, I know where you are.

[05:00:06] You're close to Gardenia, which is close to the fire station. So that is a question I had. Okay, we will take a look at that to see if it can be incorporated. Yeah, I'm not trying to cut the line. And then, so the Moore property on Braddock Road west of North Star, also the shared use path there, how close to the house will it be?

[05:00:29] So we did have the Moore property reach out and ask about the house and how close the shared use path would be near their house. So anyway, this is mainly about shared use paths and how we can make that more efficient and also work with like cerulean and the moore family to see what kind of connections we can make because you are expanding braddock am i correct you're expanding braddock as you go west correct you're expanding it to four lanes in a portion of it in the portion in

[05:01:05] the vicinity of the intersection there right and then you're expanding north star as you go south to kinsdale correct to tie back into the two lanes okay okay and real quick so is there any um shared youth path that you're working on the on the eastern side it sounds like it's mainly on the western side our plans do include on the eastern side yeah it's between kinsdale and uh product is on the east side that's it uh and and there's

[05:01:42] little sections at intersections where we fix up the curb ramps. Okay, but it's mainly the western side that you're looking at. Okay. I want to make a motion or something else right now. Is there something you want to do? You've got all your questions answered. I mean, yeah, no, no motion. Well, it's an action item. I'll make a motion. Okay. I can make the motion for the action item.

[05:02:03] Mr. Okay. Can you ask your question inside the motion, Mr. Sains? Yes. Yes. Mr. Turner, May we make a motion, please? I move the recommendation of the Finance, Government, Operations, and Economic Development Committee. The Board of Supervisors endorse the proposed location and major design elements on North Star Boulevard widening tall Cedars Parkway to Braddock Road project as presented on November 18, 2025.

[05:02:21] The Board of Supervisors business meeting action item and direct staff to proceed with the completion and the final design and preparation of construction documents. Second. Discussion on the motion. Good project. We had a good community meeting. We're doing our best to try to address a couple of concerns from residents, but I appreciate the work of DTCI on this very essential project.

[05:02:42] Mr. Sainz? Forgive me for asking this, Madam Chair, but did Supervisor Cotone get a staff briefing on this item from you guys? No, no, no, no, we're not, don't answer that. Don't answer that. No, no, no, no, no, because that's not about the item.

[05:02:57] That's about your colleague, and that's not appropriate. Well, no, but this was, that, I'm sorry, Madam Chair. We, that was a waste of staff's time. Okay, Mr. Sainz, we're not. To sit here and have her action, when she could have a staff meeting. No, no, no, Mr. Sainz, no, no, you're out of order.

[05:03:13] You can have that conversation with her later as well. I will, because that was out of order. If anything's out of order, that was out of order. Mr. Sains, you're out of order. That's done. That was ridiculous. Mr. Sains, you are out of order. You should take a break.

[05:03:31] Mr. Sains, you're out of order. Stop it. Mr. Smith, oh, for God's. Mr. Okay, is he on mic? I will continue.

[05:03:49] um that was very unprofessional and i want to remind my colleagues that when i i did a reconsideration that i was told i should just pull things from the finance committee if i have questions so that's what i did so that was very unprofessional of supervisor saints and i will just say that on the record um i want to thank um staff for everything that you've done regarding this i understand you're coming back out to the community am i correct i think i saw that in the item that you're coming back out because there were a few questions so we will check. I believe we do as we get further along in the design process. Okay, well thank you very much

[05:04:27] for doing that and thank you for answering my questions and we can circle back around regarding the shared use path. Thank you. All right, so motion was made by Supervisor Letourneau, seconded by Supervisor Tacroni. All the people who say aye. Aye. Any opposed? That motion will pass 801 with Mr. Sainz being off today. All right, the next item is also a motion that was item number Are you all here for that one too or more people are coming for that one?

[05:04:55] Okay. We are changing teams and we need some assistance in bringing up the presentation. Oh. Do you need this, you don't need the, we don't need the presentation.

[05:05:28] Which district is, this is actually the intersection improved. Does anyone else need this presentation? Okay. Mr. Kronich, you have some questions that you'd like to ask? Yeah. Thank you, Chair Randall. So this, I think the last time you guys came here, was it 2022?

[05:05:43] Am I correct? Okay. So it's been a while, and this was a long document. I have a question about you added some of the criteria. You added different criteria, which I think is awesome. Let me get it up.

[05:06:01] Sorry. You added health and community and built environment and connectivity. Can you tell me kind of what that means? I'm glad you added those. I'm just curious about what those mean.

[05:06:20] Thank you. We have our consultant VHB with us here, so he can expand on that. Yeah, so we basically included additional data sets that fell underneath those categories to better represent the active data to create a new scoring methodology that evaluate not only safety but additional factors.

[05:06:38] Okay, and health and community, does that just mean like hearing from the community and listening and getting their know? No, this is basically census data, so it's your K-12 enrollment, population density. I would refer to our table 4-2.

[05:06:54] It breaks down the data within those categories to help assist with it. Okay. So I noticed in 2017 they were all unsignalized, and now there's a lot of signalized in round four. Why the increase in signalized intersections?

[05:07:14] Can you explain that? So at the beginning of the study, or the IIB, the life of the IIB, we just look at the intersections that were unsignalized on 2017. After 2020, we start adding signalized and roundabouts.

[05:07:33] And pretty much now, when we look at the table and the rank five intersections, yes, you have a majority of intersections that are signalized instead of unsignalized as previous years. But it's pretty much because of the methodology that we're using.

[05:07:48] We removed some parameters that were just the ones that make those intersections rank five. So previously we were using just parameters like the total number of crashes. If they were more than a certain amount of crashes, that would be it.

[05:08:06] And that would be kind of like the trigger to make that intersection rank five. And then now we have crashes. We have all the parameters. But we are considering just true Loudoun County and making all the intersections at the same level in terms of the analysis that we're doing.

[05:08:24] So that's why now you have 33 signalized and 3 unsignalized intersections. But it's because of the new methodology that we're using. Okay. And then if a signal justification study had been completed and approved by VDOT, was that a factor into the methodology at all?

[05:08:41] No. Additional studies like signal justification reports or anything like that, no. That was not part of it. Okay. And then quickly, what is the timeline for improvements at Belmont Ridge Road and Creighton Road? This was not part of the round three analysis, so I think we mentioned that.

[05:08:59] That's something that we already have, a consultant on board, and we are working with the consultant to do all the short-term recommendations on Belmont. So that's one of the recommendations that were part of the project. So it's in the next couple of weeks we are going to be having kind of like the scope of work to initiate the project.

[05:09:19] And they were part of the round three. It's just that they were addressed in the Belmont Ridge study, corridor study. So the improvements were already identified and approved by the board. And that documentation is also included in the item.

[05:09:35] Okay. Okay. Thank you. I'm going to make the motion, see if we can make any other questions within the motion. I move the Board of Supervisors to endorse the 36 Rank 5 intersections as identified in the 2025 Intersection Improvement Plan Update Round 4 and authorized staff to initiate the advanced safety studies as outlined in the November 18, 2025 Board of Supervisors Business Meeting Action Item.

[05:09:59] Motions made and seconded by Supervisor by Vice Chair Turner. Just in general, I need everyone to know that the way I run these meetings is I give my colleagues a lot of latitude and there were things that happened all the time that I did I don't know well not all the time but here or there that I don't agree with but I you know there's no I there are things that as chair I could disallow and call those balls and strikes but the truth is everyone is on this dais was elected elected and they have to do the job they think they need

[05:10:35] to do for their constituents and get the answers they want to get I do I wish things were done differently. Sometimes I do. I do. And I do think people should take a look at that because it's staff's time and things. But at the same time, they have the right to do it.

[05:10:52] And so that's all I'll say about that. Ms. Bricksman. Thank you, Madam Chair. Honestly, I don't know if it's because of the new methodology or actually just more traffic, but I now have one, two, three, four, five, six, seven intersections in Algonquian District that are now ranked five. That was shocking to me and really concerning. So from that, knowing that,

[05:11:29] can you say if it was, can you, do you know what the cause is that an intersection would crop up as a number five and then do these intersections then get priority in the intersection improvement program? Correct those these rank five will now move into concept studies so we will look into them to identify what is causing them to actually be a rank five and we will identify potential concepts and design for to fix them so they will be the next list of intersection improvement projects that we will be addressing and moving forward eventually to the

[05:12:07] CIP as well. Okay, thank you. Madam Chair and Board of Supervisors, I just want to introduce everybody at the table before we keep moving on in questions. So I am the DTCL Director, Shireen D'Arazio. Marie Caraballo, I'm the Acting Assistant Director at DTCL.

[05:12:25] Enrique Gonzalez, Traffic Data Analysis Manager at DTCL. Heather Dietz, Acting Deputy Director and DTCL. And then Craig Schneider, I'm a consultant for VHB. There are a lot of new faces in the department, and yay, that's a great thing. It's wonderful. Mr. Turner. I'm sorry, Mr. Crony? We can talk within the motion. We are in the motion. Yeah, I know, I know. I ask

[05:13:03] questions, but I want to talk within the motion. So in my district, I have a lot of unsignalized, unimproved intersections versus like Algonquian, which is a more mature district that has a lot of signalized intersections that have already had improvements um i'm kind of having um issues kind of moving them up the rank because they are unsafe without in a signalization and i'm not talking about belmont ridge road i'm talking about other areas of like brambleton and birchwood that are highly populated uh near commercial centers um and near schools um where you know

[05:13:40] There's just a lot of pedestrian impacts and crashes. So will you be looking at this more frequently than every three years? I think as of right now, and the way that the program was set, it is every three years that we look at the program.

[05:13:59] We also need time and spacing between those years to be able to analyze, look at these intersections, develop the design and concepts, get them into the CIP and allocate funding for it. Okay, because I have one that was justified with the signal justification study by VDOT and really needs an improvement.

[05:14:21] But it's ranked low, and I think part of it is because, you know, North Star hasn't been accepted by VDOT yet, and we're just, you know, it will be eventually, right, within this year, probably, right? So that's something that we can take into account and look later in a year or two.

[05:14:39] I know that the particular area of North Shore, it's going to be a great influence in terms of the other segments of the roads like Belmont Ridge and all the improvements that we're doing in Belmont. So, yes, we are going to take a look later. Okay, great.

[05:14:55] I'm glad you said that because there might be an opportunity to re-look at some of these that are in my highly populated area of Little River. Yeah, and I'll just add very briefly to when we look at the intersections, we're looking at basically the 2019 CTP roadways and then the non-CTP roadways.

[05:15:13] But in addition to this methodology, we're also looking at big data for speed and volume data, as well as where there are significant crashes, so fatal and severe injury. So that will also trigger the creation of a node in the future. Okay, thank you very much. Mr. Letourneau.

[05:15:29] Thanks. Do you look at the crash data essentially per capita? Like, for instance, some intersections don't have a lot of traffic volume, but they have a lot of crashes. Or, you know, some intersections have tons of traffic volume, and there's a high number of crashes. But, you know, if there's thousands of cars going through it, then that might be more expected.

[05:15:51] Yep. So we're looking at EPDO, which is the equivalent property damage like you've previously done. But then we're also looking at the volume as a separate metric. So it's not very like proportional, but

we're also using the weights between the different categories to basically elevate safety and also the volume itself.

[05:16:10] And then, so the last round of this, I think we had like 15 projects. There's 36 level fives here. It seems unlikely we're going to get through, especially because these signalized projects, in a way, it's actually harder because we've already done the signal.

[05:16:25] Now you have to come up with some other design, and I know in our case we're still waiting for some of these things that we've come from the last round of this that were signalized. So, I mean, what's a realistic time frame to actually get through all of this? I mean, I imagine it would be quite a few years.

[05:16:42] So, in terms of the signalized intersections, this is something that we can partner with Vita, and we can ask Vita to... Well, that doesn't give me a great deal of confidence, no offense. But probably you have, as what you said, you know, it's perfect.

[05:16:59] Yes, we already have a signal at that intersection. Yeah, so you've got to come up with a sometimes more complicated solution. Yeah, but probably during the study, we can identify that it's timing that can just need to be improved. Because of the clearance sign when you get the yellow, people are not reacting.

[05:17:17] You'd be lucky if it was only single timing. Yes, if they need more visibility or signs. Some of these here, I know that it's not going to just be single timing because of the volume. The last thing I'll just note is it may be helpful as we're just presenting this. So some of these are multiple districts.

[05:17:34] Pretty much all the old ones are Old Ox Road and say Dulles. They're actually really Dulles-Stirling. In fact, one of them, I think it's just Sterling, says Dulles. But because of the boundaries, like Old Ox Road is a boundary road, a couple of those. So just for, you know, public's sake to understand where some of these are, there's fewer Dulles District ones here than it actually looks like because they're actually sort of sterling.

[05:17:58] But anyway, okay, thank you. Bye. Bye. Mr. Vice Chair Turner.

[05:18:13] Thank you, Madam Chair. So I gather from the discussion that you have over here priority numbers. Are these listed in priority order as to when you would like to do these 36? Based on the new methodology that we have now we have a scoring system that yes we can select from number one all the way to the 36.

[05:18:33] Yes. So this is the canning worms that I want to open up. Who determined the priority order? Because I can guarantee you every supervisor on this dais right now is going where are mine, where are mine in relation to my neighbor and how can I get above that person as fast as possible? So pretty much was based on the data that we were using and it's pretty much an equation and where we have multiple variables that were weighted and then at the end with the higher score that's the number one in terms of the rank five. So is it fair for me to

[05:19:10] then I don't put words in your mouth to say that your priority number one on this list of 36 would be the first project you would look to pull down out of the cip and start because of urgency and all the factors that you've used to weigh it as priority number one yes okay the only other thing i would say then is it would be helpful in this chart if we have your estimate of what this project's going to cost because at some point in our discussions if we find out we've got five million dollars that we can spend on an

intersection and there's a project here that's five million dollars and it's number five on your priority list and there's no

[05:19:49] other money available then that might trigger us to say okay jump number five we'll get into the food fight like we always do why you jump ahead of me on the list but that would at least give us one more variable to consider I think at this time we don't know exactly what the solution is going to be and that would be the next step for us we're going to look at each intersection see what the issue is and determine what is the appropriate concept to develop vetted by VDOT, and then that way we can come back and say these are the concepts and these are the approximate costs for development. And let me just commend Olia. I am so pleased to see this. I felt the

[05:20:25] process that you implemented to come up with these priorities is terrific. It's a huge step forward. I really do appreciate that you're doing this. And candidly, if you're using an objective metric to establish this is priority one, this is priority two, that's a fair way to cut out the political maneuvering of which one gets funded next if your objective metric is applied equally across the board and this is a priority you came up in okay and that makes perfect sense to me but I think it would be helpful we can like you said the next phase kind of estimate how much each one's gonna cost thank you very much it's good work welcome everybody and thank you all right I made the motion

[05:21:01] it was seconded by supervisor by Turner all in public say aye any opposed that motion will pass 9 to 0. Okay, we have, thank you very much, we appreciate it, we have three more closed sessions. Before we go into closed session, I need a five minute break and then we'll come out, we're reading closed session, and we'll take, we'll take the, which closed session number are you, sir? Well, I know, but number two first, we'll take closed session number two first. So let's, but I I need five minutes, please, before we read in.

[05:23:14] We're back.

[05:25:36] We are back. Not yet. No, I would not. No, I would not. Where is Sylvia? Where's Ms. Glass? Did she leave? No, her computer's still there. There she is. She's coming. All right, before we read in a closed session, Mr. Sains.

[05:25:56] Yes, thank you, Madam Chair. I'd just like to briefly take a minute to apologize to my colleagues and to county staff and the thousands watching in attendance of my outburst earlier just a few minutes ago. Okay, would you like to read us in the closed session?

[05:26:20] All three closed sessions, Mr. Turner. It doesn't matter what order you read us in. We're going to take number two first. I move the Board to supervise the recess of this public meeting and enter into closed session pursuant to Section 2.2, 37, 11, A, 3, 5, and 8 of the Code of Virginia to consider the acquisition of parcels of property, discuss a prospective business or industry or expansion of an existing business or industry where no previous announcement has been made leesburg election district and a consult with legal counsel employed or retained by a public body regarding a specific legal matter requiring the provision of legal advice by such counsel i further move that the board of supervisors recess this public meeting and enter into closed

[05:26:59] session pursuant to section 2.2 3711 of the code of virginia to discuss negotiations where financial interests of the county are involved pertaining to a member memorandum of agreement and i further move that the Board of Supervisors recess this public meeting and enter into closed session

pursuant to section 2.23711 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Dulles Election District. Motion made and seconded by Supervisor Letourneau discussion on the motion. Seeing none, all of them please say aye. Aye. Any opposed?

[05:27:34] Then motion passed 9-0. Oh, I'm sorry. We're going to be back in the closed session. I'm sorry,

[07:14:39] we're going to read out of closed session. I move that the closed session be adjourned. The board of supervisors reconvenes its public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted reflected in the minutes of this public meeting.

[07:14:56] Motion is made and seconded by who seconded that motion? Ms. Bricksman. Discussion on the motion? All in favor say aye. Aye. Any opposed? Everybody please affirm. Affirm. Affirm. Affirm. Affirm. Affirm. On the mic please. Affirm. Affirm. Affirm. And I affirm as well that motion will pass unanimously. Mr. Sainz. Yes thank you Madam Chair and I'd just like to again apologize to my colleagues especially Ms. Tacconi for my outburst towards you and I will speak to

[07:15:32] you offline. Okay thank you. Thank you. Anything else for the good of the of the body? I think we're Have a good, everyone have a wonderful Thanksgiving. We are adjourned.



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